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In the Supreme Court of the United States

OCTOBER TERM, 1994

BRUCE BABBITT, SECRETARY OF THE INTERIOR, ET AL.,
PETITIONERS

v.

SWEET HOME CHAPTER OF COMMUNITIES FOR
A GREAT OREGON, ET AL.

ON WRIT OF CERTIORARI
TO THE UNITED STATES COURT OF APPEALS
FOR THE DISTRICT OF COLUMBIA CIRCUIT

BRIEF FOR PETITIONERS

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QUESTION PRESENTED

Under Section 9(a)(1) of the Endangered Species Act of 1973, 16 U.S.C. 1538(a)(1), and implementing regulations, it is unlawful for any person to "take" an endangered or threatened species, except for certain "takes" that are incidental to otherwise lawful activities and authorized by the Secretary of the Interior under conditions designed to minimize and mitigate the impact on the species, 16 U.S.C. 1536(b)(4), 1539(a)(1). The Act defines the term "take" to include "harm." 16 U.S.C. 1532(19). The question presented is:

Whether the regulation promulgated by the Secretary in 1975 and 1981 that defines "harm" to include "significant habitat modification or degradation" that "actually kills or injures wildlife," 50 C.F.R. 17.3, is invalid on its face.

II

PARTIES TO THE PROCEEDINGS

The petitioners are Bruce Babbitt, in his official capacity as the Secretary of the Interior, and Mollie H. Beattie, in her official capacity as Director of the United States Fish and Wildlife Service, an agency within the Department of the Interior. The respondents are Sweet Home Chapter of Communities for a Great Oregon, Betty F. Orem, Erickson Busheling, Inc., Southeastern Lumber Manufacturers Association, Inc., Southern Timber Purchasers Council, Ridgetree Logging Company, Shotpouch Logging Company, Jean Reynolds, Emmy G. Birkenfeld, and Pat McCollum.

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OPINIONS BELOW

The March 11, 1994, opinion of the court of appeals issued after granting respondents' petition for rehearing (Pet. App. 1a-41a) is reported at 17 F.3d 1463. The August 12, 1994, statements accompanying the court of appeals' denial of petitioners' petition for rehearing and suggestion of rehearing en banc (Pet. App. 89a-99a) are reported at 30 F.3d 190. The July 23, 1993, initial opinion of the court of appeals (Pet. App. 42a-72a) is reported at 1 F.3d 1. The opinion of the district court (Pet. App. 73a-88a) is reported at 806 F. Supp. 279.

JURISDICTION

The court of appeals entered its initial judgment on July 23, 1993. The court of appeals thereafter granted respondents' petition for rehearing, and on March 11, 1994, it entered a new judgment that differed from its earlier judgment. Petitioners then sought rehearing of that new judgment, and the court of appeals denied that petition for rehearing on August 12, 1994. Pet. App. 89a-99a. The petition for a writ of certiorari was filed on November 10, 1994, and was granted on January 6, 1995. The jurisdiction of this Court is invoked under 28 U.S.C. 1254(1).

STATUTORY AND REGULATORY PROVISIONS INVOLVED

1. Section 9(a)(1) of the Endangered Species Act of 1973 (ESA), 16 U.S.C. 1538(a)(1), provides in relevant part:

Except as provided in sections 6(g)(2) and 10 of this Act, with respect to any endangered species of fish or wildlife listed pursuant to section 4 of this Act it is unlawful for any person subject to the jurisdiction of the United States to—

* * * * *

(B) take any such species within the United States or the territorial sea of the United States;

* * * * *

(G) violate any regulation pertaining to such species or to any threatened species of fish or wildlife listed pursuant to section 4 of this Act and promulgated by the Secretary pursuant to authority provided by this Act.

2. Section 3(19) of the ESA, 16 U.S.C. 1532(19) provides:

For the purposes of this Act—

The term "take" means to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect, or to attempt to engage in any such conduct.

Other pertinent provisions of the ESA (§§ 2, 4, 7, 9, 10, 16 U.S.C. 1531, 1533, 1536, 1538, 1539) are reprinted at App., *infra*, 1a-19a.

3. The Secretary of the Interior's regulation defining "harm" for purposes of the ESA, 50 C.F.R. 17.3, provides:

Harm in the definition of "take" in the Act means an act which actually kills or injures wildlife. Such act may include significant habitat modification or degradation where it actually kills or injures wildlife by significantly impairing essential behavioral patterns, including breeding, feeding or sheltering.

STATEMENT

The Endangered Species Act of 1973 (ESA), 16 U.S.C. 1531 *et seq.*, makes it unlawful for any person to "take" a species of fish or wildlife that is listed as endangered or threatened. 16 U.S.C. 1538(a)(1). The ESA defines the term "take" to mean "to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect, or to attempt to engage in any such conduct." 16 U.S.C. 1532(19). A regulation issued by the Secretary of the Interior in 1975 and 1981 in turn defines "harm" to mean an act "includ[ing] significant habitat modification or degradation" that "actually kills or injures wildlife" by "significantly impairing essential behavioral patterns, including breeding, feeding or sheltering." 50 C.F.R. 17.3. The district court sustained the validity of 50 C.F.R. 17.3. The court of appeals reversed and held the

regulation facially invalid insofar as it defines "harm" to embrace any form of habitat modification or degradation.¹

1. Congress enacted the Endangered Species Act in 1973 in response to increasing concern about the extent to which "various species of fish, wildlife, and plants" had been rendered extinct "as a consequence of economic growth and development untempered by adequate concern and conservation." 16 U.S.C. 1531(a)(1). The purposes of the ESA include providing "a means whereby the ecosystems upon which endangered species and threatened species depend may be conserved." 16 U.S.C. 1531(b).

a. Under the ESA, the Secretary determines the wildlife species that are "endangered" or "threatened" within the meaning of the Act and maintains a list of such species.² 16 U.S.C. 1533(a). In deciding whether to list a species, the Secretary must consider, *inter alia*, "the present or threatened destruction, modification, or curtailment of its habitat or range." 16 U.S.C. 1533(a)(1)(A).

¹ Responsibility for administration of the ESA is divided between the Fish and Wildlife Service (FWS) in the Department of the Interior and the National Marine Fisheries Service (NMFS), in the Department of Commerce. See 16 U.S.C. 1532(15); 50 C.F.R. 402.01(b); see also 50 C.F.R. 17.11, 17.12, 222.23(a) and 227.4 (listing species within NMFS and FWS jurisdiction). Because this action was brought against the Secretary of the Interior and the Director of FWS and was prompted by respondents' challenge to protection afforded to two species of birds within the jurisdiction of FWS, we shall refer in this brief only to the responsibilities of the Secretary of the Interior and FWS.

² "Endangered species" means any species (other than certain insect species) "which is in danger of extinction throughout all or a significant portion of its range." 16 U.S.C. 1532(6). "Threatened species" means "any species which is likely to become an endangered species within the foreseeable future throughout all or a significant portion of its range." 16 U.S.C. 1532(20). Endangered and threatened species are referred to collectively as "listed species."

When a fish or wildlife species is listed as endangered, it is protected by Section 9(a)(1) of the ESA.³ Section 9(a)(1)(B) makes it unlawful for "any person" (which includes governmental entities, see 16 U.S.C. 1532(13)) to "take" an endangered species. 16 U.S.C. 1538(a)(1)(B). The prohibition may be enforced through suits for injunctive relief, 16 U.S.C. 1540(e)(6), as well as civil and criminal penalties, 16 U.S.C. 1540(a) and (b). By regulation, the Section 9 "take" prohibition also applies generally to species that are listed as threatened.⁴

The ESA defines the term "take" to mean "to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect, or to attempt to engage in any such conduct." 16 U.S.C. 1532(19). As part of its initial set of programmatic regulations implementing the ESA, FWS promulgated a regulation in 1975 interpreting the term "harm" for purposes of the ESA. As

³ "Fish or wildlife" is defined in the ESA as "any member of the animal kingdom, including without limitation any mammal, fish, bird (including any migratory, nonmigratory, or endangered bird for which protection is also afforded by treaty or other international agreement), amphibian, reptile, mollusk, crustacean, arthropod or other invertebrate, and includes any part, product, egg, or offspring thereof, or the dead body or parts thereof." 16 U.S.C. 1532(8). The term "plant" is separately defined, see 16 U.S.C. 1532(14). The "take" prohibition in Section 9(a)(1)(B) does not apply to endangered species of plants, which are instead protected by Section 9(a)(2) of the Act, 16 U.S.C. 1538(a)(2). See note 24, *infra*.

⁴ Under Section 4(d) of the Act, 16 U.S.C. 1533(d), the Secretary may, by regulation, prohibit with respect to threatened species any act prohibited under 16 U.S.C. 1538(a)(1). The Secretary has extended the "take" prohibition in 16 U.S.C. 1538(a)(1)(B) to threatened fish and wildlife species. See 50 C.F.R. 17.31(a), 17.21(c)(1). Thus, the "take" prohibition applies to all listed species of fish or wildlife except where special rules applicable to particular threatened species otherwise provide. See 50 C.F.R. 17.40-17.48. On February 17, 1995, the Secretary published regulations under Section 4(d) that address the application of the "take" prohibition to the northern spotted owl (a threatened species). 60 Fed. Reg. 9484.

this Court noted in *TVA v. Hill*, 437 U.S. 153, 184-185 n.30 (1978), the 1975 regulation defined "harm" to mean an act that "actually injures or kills wildlife, including acts which annoy it to such an extent as to significantly disrupt essential behavioral patterns, which include, but are not limited to, breeding, feeding or sheltering," and which include "significant environmental modification or degradation which has such effects." 50 C.F.R. 17.3; see 40 Fed. Reg. 44,412, 44,416 (1975) (J.A. 49, 51). The preamble to the 1975 regulation explained that the regulation represented a "reasonable response to the habitat needs of listed species," which Congress had specifically acknowledged in the "[p]urposes" section of the ESA, 16 U.S.C. 1631; see 40 Fed. Reg. 44,413 (J.A. 50). The preamble further noted that the environmental degradation encompassed within the regulatory definition of "harm" was:

expressly limited to those actions causing actual death or injury to a protected species of fish or wildlife. The actual consequences of such an action upon a listed species is —paramount.

40 Fed. Reg. 44,413 (J.A. 50).

The Secretary revised the "harm" regulation in 1981 because of concerns that the 1975 regulatory language was susceptible to an interpretation that would bar habitat modification even where there would be no resulting injury to listed fish or wildlife, contrary to the intent of both the Secretary and Congress. See 46 Fed. Reg. 54,748 (1981) (J.A. 65). The Secretary modified the regulation to make it consistent with the original intent that a Section 9 "take" violation does not arise out of "habitat modification alone without any attendant death or injury of the protected wildlife." 46 Fed. Reg. 54,748-54,749 (1981) (J.A. 66-68). At the same time, however, the Secretary reaffirmed that "harm" is not limited "to direct physical injury to an individual member

of the wildlife species," and that in redefining the term, he "did not intend to imply that significant habitat destruction which could be shown to injure protected wildlife through the impairment of its essential behavioral patterns was not subject to the Act." 46 Fed. Reg. 54,748 (J.A. 66-67). The "harm" regulation as revised in 1981 provides:

Harm in the definition of "take" in the Act means an act which actually kills or injures wildlife. Such an act may include significant habitat modification or degradation where it actually kills or injures wildlife by significantly impairing essential behavioral patterns, including breeding, feeding or sheltering.

50 C.F.R. 17.3; see 46 Fed. Reg. 54,748 (J.A. 65).

b. In addition to the Section 9 "take" prohibition, the ESA includes other methods of protecting listed species. Section 7(a)(2) provides that each federal agency shall, in consultation with and with the assistance of the Secretary,

insure that any action authorized, funded, or carried out by such agency * * * is not likely to jeopardize the continued existence of any endangered species or threatened species or result in the destruction or adverse modification of habitat of such species which is determined by the Secretary * * * to be critical,^[5] unless

⁵ "Critical habitat" has a specific and limited meaning for purposes of the ESA. Section 4 empowers the Secretary to designate "critical" habitat for listed species. 16 U.S.C. 1533(a)(3), (b)(2) and (b)(6)(C). "Critical habitat" is defined by the Act to mean:

(i) the specific areas within the geographical area occupied by the species, at the time it is listed in accordance with the provisions of section 4 of this Act, on which are found those physical or biological features (I) essential to the conservation of the species and (II) which may require special management considerations or protection; and

such agency has been granted an exemption for such action * * * pursuant to subsection (h).

16 U.S.C. 1536(a)(2). This obligation to ensure against "jeopardizing" a species' continued existence or destroying or adversely modifying its "critical" habitat applies to a federal agency's issuance of licenses and permits to non-federal parties (for activities on either public or private lands), as well as actions undertaken by the agency itself. 16 U.S.C. 1536(a)(3); see generally 16 U.S.C. 1536(c) (directing federal agency to prepare biological assessment to determine whether listed species is "likely to be affected" by proposed action); 16 U.S.C. 1536(b) (provisions for Secretary to issue biological opinion to action agency).

The ESA also contains several provisions, in Sections 4, 5 and 7, that are aimed not merely at preventing extinction of listed species, but also at their conservation. For purposes of the ESA, "conservation" means "the use of all methods and procedures which are necessary to bring any endangered species or threatened species to the point at which the measures provided pursuant to this chapter are no longer necessary." 16 U.S.C. 1532(3). Available conservation meas-

(ii) specific areas outside the geographical area occupied by the species at the time it is listed in accordance with the provisions of section 4 of this Act, upon a determination by the Secretary that such areas are essential for the conservation of the species.

16 U.S.C. 1532(5)(A). In appropriate cases, designating unoccupied potential habitat for listed species can play a role in the recovery of the species by providing for "natural range expansion into adjacent suitable habitat." 49 Fed. Reg. 38,904 (1984). However, "[e]xcept in those circumstances determined by the Secretary, critical habitat shall not include the entire geographical area which can be occupied" by listed species. 16 U.S.C. 1532(5)(C). Thus, designation of critical habitat may add protections for a listed species against federal government actions that are likely to take place on some suitable, but unoccupied, habitat.

ures include, but are not limited to, "all activities associated with scientific resources management such as research, census, law enforcement, habitat acquisition and maintenance, propagation, live trapping, and transplantation, and, in the extraordinary case where population pressures within a given ecosystem cannot be otherwise relieved, may include regulated taking." 16 U.S.C. 1532(3).

The conservation provisions of the ESA are intended to achieve the eventual removal of the species from the endangered and threatened lists. To that end, Section 4(f) authorizes the Secretary to develop and implement recovery plans to promote the conservation of species. 16 U.S.C. 1533(f). Section 5 empowers the Secretary to utilize land acquisition and authority under other wildlife protection statutes to acquire land to implement a program to conserve endangered and threatened species. 16 U.S.C. 1534. And Section 7(a)(1) requires federal agencies, in consultation with and with the assistance of the Secretary, to "utilize their authorities in furtherance of the purposes of [the Act] by carrying out programs for the conservation of endangered species and threatened species." 16 U.S.C. 1536(a)(1).

c. The "take" prohibition in Section 9 and the "jeopardy" and "critical" habitat restrictions in Section 7 are not absolute—the Secretary may permit "incidental takings" in some instances that meet detailed criteria enacted by Congress in 1982.⁶ Specifically, by amendments to Sections 7 and 10, Congress authorized the Secretary to permit takings that would otherwise be prohibited under Section 9(a)(1)(B),

⁶ Even prior to 1982, Sections 7 and 9 were not absolute. In 1978, Congress had established a procedure for exempting projects from the Section 7(a)(2) prohibitions, see 16 U.S.C. 1536(e)-(n), and from liability for violation of the Section 9 "take" prohibition, see 16 U.S.C. 1536(o) (Supp. III 1979). Endangered Species Act Amendments of 1978, Pub. L. No. 95-632, § 3, 92 Stat. 3753-3759. See page 32, *infra*.

"if such taking is incidental to, and not the purpose of, the carrying out of an otherwise lawful activity." Endangered Species Act Amendments of 1982, Pub. L. No. 97-304, § 6(1), 96 Stat. 1422 (codified at 16 U.S.C. 1539(a)(1)(B)); see also § 4(a)(2), 96 Stat. 1418 (codified at 16 U.S.C. 1536(b)(4)).

Section 10(a)(2)(A) provides for the issuance of an incidental take permit to applicants (including nonfederal entities and private parties) who are not subject to the jeopardy and critical habitat restrictions (and related consultation requirement) applicable to federal agencies under Section 7(a)(2). Congress conditioned issuance of a Section 10 incidental take permit, however, on the assumption by the applicant of certain duties. The ESA states that "[n]o permit may be issued by the Secretary" authorizing an incidental taking unless the applicant therefor submits to the Secretary

a conservation plan that specifies—

(i) the impact which will likely result from such taking;

(ii) what steps the applicant will take to minimize and mitigate such impacts, and the funding that will be available to implement such steps;

(iii) what alternative actions to such taking the applicant considered and the reasons why such alternatives are not being utilized; and

(iv) such other measures that the Secretary may require as being necessary or appropriate for purposes of the plan.

16 U.S.C. 1539(a)(2)(A). The Secretary will issue the permit if he finds, *inter alia*, that the taking will be incidental, that the applicant will "to the maximum extent practicable, minimize and mitigate the impacts of such taking," that "the applicant will ensure that adequate funding for the plan will be provided," that "the taking will not appreciably reduce the likelihood of the survival and recovery of the species in the

wild," and that the applicant will meet "such other measures that the Secretary may require as being necessary or appropriate for purposes of the plan." 16 U.S.C. 1539(a)(2)(B) and (A)(iv).

Congress provided a somewhat different mechanism for authorizing "incidental takes" resulting from a project subject to the Section 7(a)(2) jeopardy prohibition and critical habitat restrictions. The biological opinion that FWS prepares during the formal Section 7 consultation process includes what is known as an "incidental take statement." That statement must identify the impact of any take that is anticipated to occur incidental to the proposed federal action, as well as the "reasonable and prudent measures" that the Secretary considers "necessary or appropriate to minimize such impact"; it also sets forth the "terms and conditions * * * that must be complied with by the Federal agency or [permit or license] applicant (if any) or both to implement the measures specified." 16 U.S.C. 1536(b)(4). Any taking that is in compliance with those terms and conditions is not considered a prohibited taking of the species in violation of Section 9. 16 U.S.C. 1536(o)(2).

2. Respondents are individuals and organizations in the Pacific Northwest and Southeast who are engaged in, or depend upon, timber harvesting. They allege that they are affected by the Secretary's "harm" regulation because of its application to the northern spotted owl, which was listed as a threatened species in 1990, 55 Fed. Reg. 26,114, and the red-cockaded woodpecker, which was listed as an endangered species in 1970, 50 C.F.R. 17.11(h). J.A. 17-23.⁷

Respondents brought this action as a facial challenge to the regulation, and did not challenge it as applied to any of their

⁷ The red-cockaded woodpecker was listed pursuant to the Endangered Species Conservation Act of 1969, Pub. L. No. 91-135, 83 Stat. 275, a predecessor to the Endangered Species Act.

own actions in relation to the listed birds.⁸ On cross-motions for summary judgment, the district court upheld the validity of the "harm" regulation under step one of the analytical framework set forth in *Chevron U.S.A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837, 842-843 (1984), concluding that the "language, structure and history of the ESA reveal that Congress intended an expansive interpretation of the word 'take,' an interpretation that encompasses habitat modification." Pet. App. 82a-83a. The court further stated that even if it were to find the ESA "silent or ambiguous" on the issue, it would uphold the Secretary's regulation under step two of the *Chevron* analysis as a reasonable interpretation of the Act. *Id.* at 83a. The district court also held that the regulatory definition of "harm" was not void for vagueness. *Id.* at 83a-85a.

3. a. The court of appeals initially affirmed the district court's judgment, with the panel divided on the question of the validity of the "harm" regulation. Pet. App. 42a-72a. The majority opinion included a *per curiam* ruling that the "harm" regulation does not violate the ESA. *Id.* at 46a. Chief Judge Mikva wrote a concurring opinion, reasoning that the "harm" regulation represents a reasonable interpretation of the Act that is entitled to deference under *Chevron*. *Id.* at 59a-66a. Judge Williams wrote a concurring opinion agreeing that the regulation complies with the ESA. He reasoned that the 1982 amendments authorizing incidental taking permits "support the inference that the ESA otherwise forbids some such incidental takings, including some habitat modifications." *Id.* at 67a. Judge Sentelle dissented. *Id.* at 68a-72a.

⁸ Respondents also challenged the facial validity of a regulation that extends certain protections to threatened species, 50 C.F.R. 17.31(a). The courts below sustained that regulation (see Pet. App. 85a-88a; *id.* at 2a, 51a-58a), and no party sought further review of that issue.

b. The panel granted respondents' petition for rehearing and, on March 11, 1994, in another divided decision, reversed the district court's judgment with respect to the validity of the "harm" regulation."⁹ Pet. App. 1a-41a. Judge Sentelle filed a concurring opinion (*id.* at 25a-26a) and Chief Judge Mikva filed a dissenting opinion (*id.* at 27a-41a).

The court of appeals concluded that the "harm" regulation was "neither clearly authorized by Congress nor a 'reasonable interpretation' of the statute," and that no later action of Congress "supplied the missing authority." Pet. App. 3a, citing *Chevron*, 467 U.S. at 842-843, 844. The court acknowledged that "[t]he potential breadth of the word 'harm' is indisputable," Pet. App. 3a, but nonetheless held that the Secretary's definition of the term is too broad. In the court's view, the other words in the statutory definition ("harass, * * * pursue, hunt, shoot, wound, kill, trap, capture, or collect") all "contemplate the perpetrator's direct application of force against the animal taken"—*e.g.*, "A hit B." *Id.* at 4a. The court reasoned that it should therefore apply the maxim "*noscitur a sociis*" (that a word is known by the company it keeps) and read the term "harm" as limited to direct application of force against animals, and to exclude any habitat modification. *Id.* at 5a-7a.

The court viewed the "structure and history of the Act" as confirming its reading. Pet. App. 7a. Thus, it read the "harm" regulation to have "transposed to the private anti-'take' provision" the duty of federal agencies under Section 7(a)(2) to ensure that actions are "not likely to jeopardize the continued existence" of a listed species or result in "*the destruction or adverse modification of habitat* of such species which is determined * * * to be critical.'" Pet. App. 7a. The court

⁹ The court's original judgment is otherwise unaltered. Pet. App. 24a. Thus, the court of appeals adhered to its rulings that 50 C.F.R. 17.31 is valid and that the "harm" regulation is not void for vagueness.

found that result to be contrary to the legislative history of the ESA, which it read as assigning "the primary task of habitat preservation to the government." *Id.* at 8a. The court also noted that the bill ultimately enacted did not include language in one bill considered by the Senate committee that would have defined "take" to include "the destruction, modification, or curtailment of [a species'] habitat or range." *Id.* at 9a-10a. Finally, the court read the legislative history of the 1982 amendments' provision for incidental take permits as not referring to habitat modification, and therefore as not ratifying the Secretary's interpretation. *Id.* at 10a-24a.

In a concurring opinion, Judge Sentelle expressed the view that the language and structure of the ESA provided a sufficient basis for invalidating the "harm" regulation and that resort to the legislative history was unnecessary. Pet. App. 25a. He also reasoned that to define "harm" as the Secretary does would render superfluous the other words in the statutory definition of "take." *Ibid.*

Judge Mikva dissented. Pet App. 27a-41a. He first objected that the majority erroneously shifted the burden to the government agency to show that its interpretation is clearly authorized or reasonable, whereas, under *Chevron*, the burden is on those challenging governmental action to show either that Congress has directly spoken on the issue or that the agency's interpretation is unreasonable. *Id.* at 28a. In this case, Judge Mikva concluded that the Act is silent, or at best ambiguous, on the scope of the term "harm," so that the issue is whether the Secretary's interpretation of that term constitutes a permissible reading of the ESA. *Id.* at 29a. He concluded that it does, expressing the view that the majority's application of *noscitur a sociis* was fatally flawed because the "definition of 'take' does not conform to the paradigm of one broad word alongside many narrow ones." *Id.* at 30a.

Judge Mikva found additional support for the Secretary's interpretation in the purpose and legislative history of the

ESA, including the 1982 amendments. The amendments, he reasoned, demonstrate that Congress thought that the original Section 9 prohibition against "takings" included some "incidental takings," and that by "incidental takings" Congress clearly meant to include some habitat modification. Pet. App. 37a-39a.

c. Petitioners filed a petition for rehearing with suggestion of rehearing *en banc*, which the court denied on August 12, 1994. Pet. App. 89a-90a. Judge Williams, writing for the panel majority, issued a statement accompanying the order denying rehearing. In response to petitioners' contention that the court had ascribed an overly broad reading to the Secretary's "harm" regulation, the panel majority expressed the belief that omissions as well as affirmative acts are embraced by the regulation, and that enforcement of the regulation would reach habitat modification over vast tracts of land. *Id.* at 91a. The panel majority also reiterated its view that the "harm" regulation imposes on private parties responsibilities under Section 9 that are identical to those imposed on federal agencies under Section 7. *Id.* at 91a-94a. Finally, in response to petitioners' submission that its *Chevron* analysis was flawed and unclear, the panel majority announced that its invalidation of the regulation was based on step one of the *Chevron* analysis and that, in its view, the Act "manifests a clear determination by Congress" that the Section 9 "take" prohibition "should not reach habitat modifications * * * where there is no direct action by the defendant against any member of the species." Pet. App. 95a.

Four members of the court of appeals voted to grant rehearing *en banc*. Pet. App. 90a. Three of those judges—Judge Silberman, joined by Chief Judge Mikva and Judge Wald—filed a statement expressing the view that under a *Chevron* analysis, the interpretation of "harm" in the Secretary's regulation should be sustained. *Id.* at 98a-99a.

SUMMARY OF ARGUMENT

A. The Secretary of the Interior's interpretation of "harm" is based on a reasonable construction of the Endangered Species Act of 1973 (ESA). Defining "harm" to include habitat modification or degradation that actually kills or injures wildlife is consistent with the text and structure of the Act. The carefully tailored "harm" regulation does not apply to habitat modification or degradation generally. It is limited to such actions that actually kill or injure. The ordinary meaning of "harm" encompasses killing or injuring, whether by habitat modification or otherwise. The court of appeals' reliance on *noscitur a sociis* to invalidate the Secretary's interpretation was misplaced. Construing "harm" as extending the "take" definition to embrace all conduct that comes within the more particular words of the statute, such as "kill," gives effect to all the words in the statute so that none is superfluous. To sustain respondents' facial challenge to the regulation would be inconsistent with the object and structure of the Act as a whole.

B. From the outset, Congress intended the prohibition against the "taking" of endangered species in Section 9(a)(1)(B) to be interpreted broadly to include "every conceivable way in which a person can 'take'" wildlife. The Secretary's regulation has been in effect, with revision in 1981, since shortly after the ESA was enacted and warrants substantial deference. As early as 1978, this Court cited the "harm" regulation approvingly in *TVA v. Hill*, 437 U.S. 153, 185, emphasizing the regulation's inclusion of "significant environmental modification or degradation." Congress amended the ESA on the heels of *TVA v. Hill* to permit federal projects that obtain an exemption under Section 7 of the Act to be exempted from the Section 9 "take" prohibition, and any regulations promulgated thereunder (no doubt including the "harm" regulation in light of the virtually contemporaneous

TVA ruling). Congress's 1982 amendment of the ESA reinforced the validity of the "harm" regulation through the creation of the incidental take permit process. The text and history of that permit process leave no doubt that Congress, like the Secretary, interprets the Section 9 "take" prohibition to extend, in the absence of such a permit, to actions that cause a "take" by habitat modification.

C. Contrary to the court of appeals' interpretation, the Secretary's interpretation of "harm" does not impose on private parties the same obligations imposed on federal agencies by Section 7. The court's erroneous reasoning is based on its misunderstanding of "critical habitat" under the ESA and its failure to appreciate that various provisions of the ESA were designed to overlap to further the purposes of the Act. The court of appeals nonetheless invalidated the "harm" regulation on the basis of imagined applications that were not before it. Application of the standard for determining whether a regulation is valid on its face (*i.e.*, whether there are any circumstances under which the regulation would be valid) demonstrates that the Secretary's interpretation should be sustained.

ARGUMENT

THE SECRETARY'S INTERPRETATION OF "HARM" IS BASED ON A REASONABLE CONSTRUCTION OF THE ENDANGERED SPECIES ACT AND THEREFORE SHOULD BE SUSTAINED

"[T]he Endangered Species Act of 1973 represented the most comprehensive legislation for the preservation of endangered species ever enacted by any nation." *TVA v. Hill*, 437 U.S. 153, 180 (1978). "The plain intent of Congress in enacting [the ESA] was to halt and reverse the trend toward species extinction, whatever the cost." *Id.* at 184. It is widely recognized that loss or degradation of habitat most often poses

the greatest risk to endangered and threatened species. *Id.* at 179; Edward O. Wilson, *The Diversity of Life* 253, 346 (Belknap Press, Harv. Univ. Press 1992); Daniel J. Rohlf, *The Endangered Species Act: A Guide to its Protection and Implementation* 11 (Stan. Env'tl. Law Soc'y 1989). When Congress enacted the ESA in 1973, it concluded that habitat destruction played a central role in the rising number of species threatened with extinction. Thus, one of the stated purposes of the ESA is "to provide a means whereby the ecosystems upon which endangered species and threatened species depend may be conserved." 16 U.S.C. 1531(b).

The Secretary of the Interior is charged with responsibility for implementing and enforcing the ESA. See 16 U.S.C. 1533. The Secretary, through the Director of the Fish and Wildlife Service, promulgated a regulation, 50 C.F.R. 17.3, to define "harm," which is one of the words used in the ESA to define "take." 16 U.S.C. 1532(19). The term "take" is significant under the ESA both because Section 9 makes it unlawful for "any person" to "take" an endangered species, and because Sections 7 and 10 establish procedures for permitting a "take" that is merely incidental to an otherwise lawful activity. The Secretary's regulation defines "harm" to mean an act that "actually kills or injures wildlife," including "significant habitat modification or degradation" that causes those consequences by "significantly impairing essential behavioral patterns" of the wildlife, such as "breeding, feeding and sheltering." 50 C.F.R. 17.3.

When a court reviews an agency's construction of a statute that it administers, the two-step inquiry prescribed by this Court in *Chevron U.S.A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837, 842-843 (1984), governs the analysis. At step one, the reviewing court determines "whether Congress has directly spoken to the precise question at issue." *Id.* at 842. If the court determines that Congress unambiguously expressed an intent on the precise

question, the court must give effect to that intent. *Id.* at 843. If the statute is silent or ambiguous with respect to the issue, however, the court proceeds to step two and determines whether the agency's interpretation is based on a permissible construction of the statute. *Id.* at 843-845. "If the administrator's reading fills a gap or defines a term in a way that is reasonable in light of the legislature's revealed design, [the Court] give[s] the administrator's judgment 'controlling weight.'" *NationsBank v. Variable Annuity Life Ins. Co.*, No. 93-1612 (Jan. 18, 1995), slip op. 5 (quoting *Chevron*, 467 U.S. at 844).

Respondents brought this action as a facial challenge to the "harm" regulation insofar as it embraces any habitat modification activities. Respondents assume a "heavy burden" by attacking the regulation on its face. See *Rust v. Sullivan*, 500 U.S. 173, 183 (1991), quoting *United States v. Salerno*, 481 U.S. 739, 745 (1987). To prevail, they "must establish that no set of circumstances exists under which the [regulation] would be valid." *Reno v. Flores*, 113 S. Ct. 1439, 1446 (1993), quoting *United States v. Salerno*, 481 U.S. at 745; see also *INS v. National Ctr. for Immigrants' Rights*, 112 S. Ct. 551, 555 (1991); cf. *Bowen v. Yuckert*, 482 U.S. 137, 154 n.12 (1987); *California Coastal Comm'n v. Granite Rock Co.*, 480 U.S. 572, 593 (1987) (facial preemption challenge defeated by identifying possible set of conditions in which state requirements are not in conflict with federal law). Thus, respondents must establish that Congress intended that in no set of circumstances could Section 9's provision forbidding any person to "take" a protected species—i.e., to "harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect" such a species—be applied to conduct that "actually kills or injures wildlife" by means of "significant habitat modification or degradation." This respondents failed to do.

The district court sustained the "harm" regulation against respondents' facial challenge at step one of the *Chevron*

analysis, holding that the "language, structure and history of the ESA reveal that Congress intended an expansive interpretation of the word 'take,' an interpretation that encompasses habitat modification." Pet. App. 82a-83a. At the very least, however, the Secretary's interpretation of the term "harm" is a "permissible" or "reasonable" one in light of the "revealed design" of Congress in the ESA (*NationsBank*, slip op. 5), and it therefore should be sustained under step two of the *Chevron* analysis.

As its language makes clear, the regulatory definition of "harm" does not apply to habitat modification or degradation generally. It reaches only such acts that in turn actually kill or injure wildlife. This carefully tailored regulation is firmly supported by the text of the statutory definition of "take," the structure and purposes of the ESA as a whole, the legislative history of the original 1973 enactment of the ESA, the consistent and longstanding administration of the Act, and the 1978 and 1982 amendments to the Act that specifically addressed the subject of "takes." The court of appeals therefore erred in holding that the regulation's inclusion of *any* habitat modification activities—even those that "actually kill or injure wildlife"—is invalid on its face.

A. The Text And Structure Of The Act Support The Secretary's Interpretation

The Secretary's interpretation of the statutory term "harm" is affirmatively supported by the text and structure of the ESA in a number of respects.

1. The term "take" is defined in the Act to mean "to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect, or to attempt to engage in any such conduct." 16 U.S.C. 1532(19). In ordinary usage, the word "harm," in its verb form, means "to cause hurt or damage to: INJURE," *Webster's Third New International Dictionary* 1034 (1986), or "to do or cause harm to; injure; damage; hurt," *The*

Random House Dictionary of the English Language 873 (2d ed. 1987). This common understanding of the word unquestionably encompasses an act that actually "kills or injures wildlife"—the basic definition of "harm" in the first sentence of 50 C.F.R. 17.3. Respondents do not challenge that basic definition of "harm" by the Secretary, and its soundness is demonstrated by the fact that the definition of "take" in the ESA itself expressly includes "kill" and "wound."

The second sentence of 50 C.F.R. 17.3, which respondents do challenge, merely elaborates on the basic definition in the first sentence by explaining its application in one particular context. The second sentence specifies that an act constituting "harm" may include the actual killing or injuring of wildlife by means of "significant habitat modification or degradation" that "significantly impair[s]" essential behavioral patterns of the wildlife. There is no reason why Congress would have intended to allow the killing or injuring of protected wildlife where that consequence is brought about by the destruction of habitat essential for the wildlife's breeding, feeding, or shelter, rather than by other means, such as the discharge of a firearm or similarly direct application of force (the types of actions to which the court of appeals believed the "take" prohibition should be limited, see Pet. App. 4a).

2. The court of appeals in fact acknowledged that the "potential breadth of the word 'harm' is indisputable" and that "harm" can be understood to include conduct encompassed by the regulatory definition. Pet. App. 3a-4a. The court nevertheless rejected the Secretary's interpretation by relying on the maxim *noscitur a sociis*. *Id.* at 6a-7a. That reliance was misplaced. The assumption underlying the court of appeals' invocation of *noscitur a sociis* was that Congress must have intended for certain words in the definition of "take" that involve the application of physical force ("hunt," "shoot," "trap," "capture") to furnish a narrowing focus even with

respect to "harm," despite that word's concededly broader connotation. Whatever utility the maxim *noscitur a sociis* might have in other settings, it does not assist respondents here, especially since the relevant statutory language contains both broader and narrower terms.¹⁰

The placement of "harm" between the words "harass" and "pursue" in the ESA's definition of "take" is sufficient in itself to refute the court of appeals' crabbed interpretation, for neither of those words necessarily (or even ordinarily) involves the direct application of force. There accordingly is no reason why the word "harm" should be artificially confined in that manner. Compare *Third Nat'l Bank in Nashville v. Impac Ltd.*, 432 U.S. 312, 322 (1977) (construing term by reference to words it is "sandwiched in between"); *Dole v. United Steelworkers*, 494 U.S. 26, 36 (1990) (statutory term

¹⁰ The maxim *noscitur a sociis* applies only where "the legislative intent or meaning of a statute is not clear." 2A Norman J. Singer, *Sutherland Statutes and Statutory Construction* § 47.16 (5th ed. 1992) [Sutherland]; *Russell Motor Car Co. v. United States*, 261 U.S. 514, 519, 520 (1923). Thus, the majority's invocation of the maxim undermines its later statement (upon the denial of rehearing en banc) that its holding rested on a finding of an "unambiguously expressed" and "clear" determination by Congress that Section 9 does not reach the acts of habitat modification encompassed by the second sentence of 50 C.F.R. 17.3. See Pet. App. 95a. To be sure, a court may employ traditional tools of statutory construction at *Chevron* step one to determine whether Congress expressly resolved the relevant question, *INS v. Cardoza-Fonseca*, 480 U.S. 421, 446-447 (1987). But because resort to the maxim *noscitur a sociis* necessarily is premised on some measure of textual ambiguity, a court should not lightly rely on that maxim to override the agency's interpretation of a particular statutory term that is otherwise reasonable and consistent with the context of the statute as a whole. See *Michigan Citizens for an Indep. Press v. Thornburgh*, 868 F.2d 1285, 1292 (D.C. Cir.) ("*Chevron* implicitly precludes courts' picking and choosing among various canons of statutory construction to reject reasonable agency interpretations of ambiguous statutes."), aff'd by an equally divided court, 493 U.S. 38 (1989).

may be "understood to be analogous to the examples surrounding it").

The structure of the statutory definition of "take" reinforces that conclusion in another respect. A number of terms at the beginning of the definition ("harass, harm, pursue") are broader than those that follow ("hunt, shoot, wound, kill, trap, capture or collect"). When specific words follow general words in a statutory enumeration, effect is given "to both the particular and the general words, by treating the particular words as indicating the class, and the general words as extending the provisions of the statute to everything embraced in that class, though not specifically named by the particular words." *Sutherland* § 47.17, at 189 (describing maxim *ejusdem generis*, a variation of *noscitur a sociis*). In this case, the general word "harm" can be understood to apply the statutory term "take" to all conduct of the sort that the other words ("kill," "wound," etc.) merely exemplify, *Brown v. Gardner*, 115 S. Ct. 552, 555 (1994), including conduct that causes such consequences as killing or wounding by means of significant habitat modification. See 46 Fed. Reg. 29,491 (1981) (J.A. 56-57); 46 Fed. Reg. 54,749 (J.A. 68) ("Congress intended to create a definition of take which included all of the various ways of killing or injuring protected wildlife."). This construction gives effect to all the words in the definition so that none is superfluous, thereby answering a concern expressed by Judge Sentelle in his concurring opinion below. See Pet. App. 25a.¹¹

¹¹ There is no reasonable definition of "harm" that would not overlap with some of the other terms. Moreover, the principle against surplusage is in tension with *noscitur a sociis*. To avoid surplusage, the word "harm" must be given meaning that is different from, rather than synonymous with, the other terms. The court of appeals' interpretation, by contrast, does render the term "harm" superfluous.

3. Respondents' effort to carve out of the "take" prohibition those actual killings of or injuries to wildlife that are brought about by means of habitat modification or degradation also is inconsistent with "the object and structure of the Act as a whole." *Dole v. United Steelworkers*, 494 U.S. at 36. In *TVA v. Hill*, this Court described the ESA as "the most comprehensive legislation for the preservation of endangered species ever enacted by any nation." 437 U.S. at 180. The Court also noted Congress's recognition that the destruction of habitat often poses the greatest risk to protected species, *id.* at 179, and that the ESA's "stated purposes were 'to provide a means whereby the ecosystems upon which endangered species and threatened species depend may be conserved,' and 'to provide a program for the conservation of such . . . species . . .,'" *id.* at 180 (quoting 16 U.S.C. 1531(b)). To achieve those purposes, the Act contains numerous provisions that specifically address, in varying ways, the protection of habitat. See pages 7-9, *supra*; see, *e.g.*, 16 U.S.C. 1533(a)(3), (b)(2) and (b)(6)(C), 1534, 1536(a)(2). It would be directly contrary to both the comprehensive thrust of the Act and its recognition of the importance of habitat for species survival to construe the prohibition against "taking" a protected species not to reach the actual killing or injuring of wildlife that results from significant modification or degradation of habitat on which the wildlife depends for its "essential" behavioral patterns.

Furthermore, as we explain below (see pages 32, 34, *infra*), Congress amended Sections 7 and 10 in 1978 and 1982 to authorize exemptions to the taking prohibition in Section 9 in particular circumstances, and those exempting provisions are tailored precisely to accommodate incidental takes of protected species that are caused by land development and other forms of habitat modification. Congress's fashioning of exemptions for habitat modification activities that would otherwise constitute a "take" of protected species weighs

strongly against an interpretation of the Act that would altogether exclude such activities from the "take" prohibition in the first place.

B. The Validity Of The "Harm" Regulation Is Supported By The Background Of And Subsequent Amendments To The Endangered Species Act

Any doubts about whether the Secretary's interpretation of "harm" represents a reasonable interpretation of the ESA are removed by a consideration of the legislative history of the Act in 1973, as well as by the text and legislative history of the amendments to the Act in 1978 and 1982.

1. The background and legislative history of the 1973 Act support the Secretary's interpretation of "harm" and undermine that of the court of appeals. In the first place, the court of appeals' attempt to tie "harm" to what it perceived to be narrower terms in the ESA's definition of "take" that involve the direct application of physical force ignores the fact that the inclusion of "harass" and "harm" in the ESA constituted a marked departure from the definition of "take" in predecessor wildlife statutes, such as the Migratory Bird Treaty Act (MBTA), 16 U.S.C. 703 *et seq.*, and the Marine Mammal Protection Act (MMPA), 16 U.S.C. 1361 *et seq.* The definition of "take" under the Migratory Bird Treaty Act omits both "harm" and "harass." See 16 U.S.C. 703 (1988 & Supp. V 1993).¹² When Congress enacted the MMPA in 1972, it

¹² The Migratory Bird Treaty Act, 16 U.S.C. 703 *et seq.*, was passed 55 years prior to the ESA for the purpose of halting the "indiscriminate slaughter" of migratory birds. See, *e.g.*, 55 Cong. Rec. 5544-5545 (1917); S. Rep. No. 2, 65th Cong., 1st Sess. (1917). It prohibits the taking of virtually every bird in the United States, not just endangered or threatened birds.

Even though the definition of "take" in the Migratory Bird Treaty Act is undoubtedly narrower than that in the ESA, see *Seattle Audubon Soc'y v. Evans*, 952 F.2d 297, 302-303 (9th Cir. 1991) ("[h]abitat destruction causes 'harm' to the owls under the ESA but does not 'take' them within the

included "harass" in the definition of "take." See 16 U.S.C. 1362(13) (Supp. V 1993).¹³ Then, when enacting the ESA in 1973, Congress enlarged the concept of "take" still further by adding "harm" to the definition. See 16 U.S.C. 1532(19). The court of appeals' endeavor to maintain conformity with the narrowest terms defining "take" under the ESA defeats the deliberate enlargement of that concept under the ESA.

meaning of the MBTA"), the MBTA has been applied to circumstances that cannot be characterized as involving a direct application of force. For example, *United States v. FMC Corp.*, 572 F.2d 902 (2d Cir. 1978), held that migratory waterfowl were "killed" in violation of the Migratory Bird Treaty Act's "take" prohibition as the result of the defendant's release of chemicals in its manufacturing process, even though the defendant did not intend to harm birds and did not know its action would be lethal to them.

¹³ Contrary to the court of appeals' suggestion (Pet. App. 5a), *United States v. Hayashi*, 22 F.3d 859 (9th Cir. 1993), does not support the court's conclusion that the "take" prohibition under the ESA requires a substantially direct application of force. *Hayashi* involved a criminal prosecution for violation of the "take" provision under the MMPA. The Ninth Circuit specifically noted that the ESA "harm" regulation, "is not the controlling regulatory definition and is an improper starting point for any MMPA prosecution." 22 F.3d at 864; see also *id* at 862. The issue in *Hayashi* was whether a fisherman's firing of a rifle in order to scare porpoises away from his fishing lines constituted a criminal "take" by "harassment" under the MMPA, which is defined by a regulation, see 50 C.F.R. 216.3, that differs from the "harm" regulation at issue here. In holding that it did not, the court reasoned that the fisherman's action did not disrupt normal behavioral patterns because feeding from a fishing line is not part of porpoises' normal eating habits. 22 F.3d at 864-865. The court also believed that the fisherman's action did not have a significant impact on the porpoises because the disruption was of short duration and because regulations also prohibit the feeding of porpoises. *Ibid*. Thus, *Hayashi* turned on the court's conclusion that the activity in question had no significant adverse effect on the wildlife's normal and essential behavioral patterns. Moreover, the ruling in *Hayashi* is of no continuing importance, because in Section 12 of the MMPA Amendments of 1994, Pub. L. No. 103-238, 108 Stat. 557, Congress enacted a definition of "harassment" that is more expansive than the Ninth Circuit's interpretation in *Hayashi*.

The court of appeals' narrow focus on actions that involve the direct application of physical force also is inconsistent with the legislative history addressing the word "harass," which immediately precedes "harm" in the statutory definition of "take" and which, as pointed out above (see pages 22-23, *supra*) does not connote the direct application of physical force. The House Report on the 1973 Act explained that the prohibition of actions that "harass" species, "whether intentional or not," would allow the "Secretary to regulate or prohibit the activities of birdwatchers where the effect of those activities might disturb the birds and make it difficult for them to hatch or raise their young." H.R. Rep. No. 412, 93d Cong., 1st Sess. 11 (1973).¹⁴ Such otherwise benign actions as birdwatching do not reasonably fit the supposed paradigm of direct physical force applied against an animal. See *Palila v. Hawaii Dep't of Land & Natural Resources*, 852 F.2d 1106, 1108-1109 (9th Cir. 1988) (*Palila II*) ("If the 'harassment' form of taking includes activities so remote from actual injury to the bird as birdwatching, then the 'harm' form of taking should include more direct activities."—in that case, the maintenance of sheep that fed on and destroyed woodlands on which an endangered species depended for survival).¹⁵

Finally, a narrow focus on physical blows to the body of individual animals would defeat the intent expressed by the responsible congressional committees that "take" have a broad scope. See S. Rep. No. 307, 93d Cong., 1st Sess. 7 (1973)

¹⁴ The passage from the House Report quoted in the text also confirms that the taking prohibition focuses on the "effect" the conduct has on a species, rather than on the means by which the effect is brought about.

¹⁵ *Palila II* was a suit by environmental groups against the State of Hawaii for maintaining feral sheep in the remaining habitat areas of the endangered Palila bird. The sheep were maintained for hunting, but their overbrowsing and destruction of trees upon which the Palila depended for its survival were held to cause a "take" in violation of Section 9.

(" 'Take' is defined * * * in the broadest possible manner to include every conceivable way in which a person can 'take' or attempt to 'take' any fish or wildlife."); see also H.R. Rep. No. 412, 93d Cong., 1st Sess. 11, 15 (1973).

The court of appeals believed that its narrow reading of "take" was supported by the failure of the Senate Committee on Commerce to adopt a definition in the version of the bill (S. 1983, 93d Cong., 1st Sess. (1973)) that, as introduced, would have made modification of habitat a form of "take." See Pet. App. 8a-9a. The proposal in question, however, would have made *all* destruction, modification or curtailment of a listed species' habitat or range a "take," regardless of the effect on a listed species.¹⁶ In other words, under that provision, habitat modification would have been a *per se* violation of Section 9. The provision did not contain the limitations inhering in the concept of "harm" to the species itself. "Harm" was added to the definition of "take" later in the legislative process (after the habitat modification provision was omitted) and, under the Secretary's interpretation, it applies only if the habitat modification or degradation is significant and actually kills or injures protected wildlife.

Moreover, S. 1983 was one of two endangered species bills under consideration by the Senate committee. The other bill contained all of the terms in the definition of "take" as finally enacted except "harass" and "harm." See S. 1592, 93d Cong., 1st Sess. § 2(d)(4) (reproduced at 119 Cong. Rec. 12,432 (1973)). The bill reported out of committee included the terms in S. 1592 as introduced, plus "harass" from S. 1983. See S. Rep. No. 307, *supra*, at 14. The Senate Report did not explain why the Committee included some terms in the definition but not

¹⁶ The bill in question defined "take" to mean to "threaten, harass, hunt, capture, or kill [an endangered species] * * * or the destruction, modification, or curtailment of its habitat or range." S. 1983, 93d Cong., 1st Sess. § 3(6) (1973).

others, but it did express the intent (quoted above) to define "take" in the "broadest possible manner to include every conceivable way in which a person can 'take' " fish or wildlife. *Id.* at 7. The word "harm" was then added during the Senate floor debate as part of a package of amendments that were intended "to achieve the purposes of the bill" and to "clarify some confusion caused by language remaining in the bill from earlier drafts or omitted from earlier drafts which went unnoticed during the final committee markup." 119 Cong. Rec. 25,683 (1973) (Sen. Tunney). In these circumstances, the Senate committee's failure to adopt a provision referring broadly to habitat modification *per se* (without regard to any effect on wildlife) does not suggest that the Secretary acted unreasonably in giving a far more circumscribed scope to a different term ("harm") under a regulation that *does* focus on resulting injury or death to wildlife. Cf. *United States v. Lee*, 937 F.2d 1388, 1391 (9th Cir. 1991) (declining to give limiting significance to deletion of word in Lacey Act because overall congressional intent was to expand scope of the Act), cert. denied, 112 S. Ct. 977 (1992).¹⁷

2. The Secretary promulgated the original version of the "harm" regulation in 1975 (50 C.F.R. 17.3; see 40 Fed. Reg. 44,412, 44,416 (J.A. 49, 51)), shortly after the ESA was passed. Following the 1981 revision (46 Fed. Reg. 54,748 (J.A. 65)), it has remained in effect ever since. The regulation therefore

¹⁷ The legislative history likewise does not support the court of appeals' suggestion that Congress intended land acquisition pursuant to Section 5 of the ESA to be the exclusive means by which habitat destruction on private lands can be curbed under the ESA. The legislative history cited by the court of appeals (Pet. App. 8a-9a) simply indicates that Congress considered acquisition of private land to be one available tool in addressing habitat concerns. It would depart from the ESA's comprehensive design to assume that Congress compartmentalized the problems associated with endangered species and provided only a single solution to a complex problem—especially one as central to the Act as the habitat of protected species.

represents the Secretary's contemporaneous and long-standing interpretation of the term "harm," and as such is entitled to particular deference. See *Brown v. Gardner*, 115 S. Ct. at 557, citing *Zenith Radio Corp. v. United States*, 437 U.S. 443, 450 (1978). The subsequent history of the regulation and the provisions later added to the Act to address the "take" prohibition validate that interpretation and build upon the protection it affords.

3. Significantly, only three years after the "harm" regulation was promulgated, this Court discussed the regulation's operation and its place in the overall statutory scheme in *TVA v. Hill*. The Court stated:

The plain intent of Congress in enacting this statute was to halt and reverse the trend toward species extinction, whatever the cost. This is reflected not only in the stated policies of the Act, but in literally every section of the statute. All persons, including federal agencies, are specifically instructed not to "take" endangered species, meaning that no one is "to harass, harm, pursue, hunt, shoot, wound, trap, capture, or collect" such life forms.

437 U.S. at 184-185 (quoting 16 U.S.C. 1538(a)(1)(B) (1976)). In a footnote to the word "harm" in the statutory definition of "take," the Court quoted (with emphasis) the "harm" regulation's inclusion of "*significant environmental modification or degradation*" that actually injures or kills wildlife, and explained that it did "not understand how TVA intends to operate Tellico Dam without 'harming' the snail darter." 437 U.S. at 184-185 n.30. In light of this Court's early recognition of the central role played by the take prohibition (specifically including the "harm" regulation) in achieving the overall purposes of the Act, the Court should be reluctant, 17 years later, to endorse an interpretation of "harm" that would render the current version of that same regulation facially invalid insofar as it interprets the Act to prohibit those

significant modifications or degradations of habitat that actually kill or injure protected wildlife.

4. When Congress enacted the Endangered Species Act Amendments of 1978, Pub. L. No. 95-632, 92 Stat. 3752, in the immediate wake of this Court's decision in *TVA v. Hill* (see H.R. Rep. No. 1625, 92d Cong., 2d Sess. 3-4, 10 (1978)), it chose to retain the "harm" regulation in effect. During the extensive hearings that preceded those amendments, representatives of the timber industry and other witnesses called attention to the "take" prohibition in Section 9, its application to activities on private land, and the regulation defining "harm" to include significant environmental modification or degradation that significantly disrupts normal behavioral patterns; and a number of witnesses urged Congress to refine the statutory definition of "take" so as to exclude land management activities on private lands.¹⁸ In response to those criticisms, Senator Garn proposed (and later withdrew) amendments that included the following redefinition of "take":

The term "take" means purposefully to harass, harm, pursue, hunt, shoot, wound, kill, trap, capture, or collect, or to attempt to engage in any such conduct which is inimical to the continued existence of an endangered or threatened species. It does not include effects from normal forestry, farming, ranching or water management practices.

¹⁸ *Endangered Species Oversight: Hearings Before the Subcomm. on Resource Protection of the Senate Comm. on Environment and Public Works*, 95th Cong., 1st Sess. 306-307, 316 (1977); *Amending the Endangered Species Act of 1973: Hearings on S. 2899 Before the Subcomm. on Resource Protection of the Senate Comm. on Environment and Public Works*, 95th Cong., 2d Sess. 50, 52, 59, 222, 260, 389 (1978); *Endangered Species, Parts 1 & 2: Hearings Before the Subcomm. on Fisheries and Conservation and the Environment of the House Comm. on Merchant Marine and Fisheries*, 95th Cong., 2d Sess. 206, 211, 223, 413, 724-725, 726-727 (1978).

124 Cong. Rec. 21,565 (1978).

Despite the attention focused on the subject, Congress did not revise the statutory definition of "take" or modify the general operation of the prohibition in Section 9 as it affects habitat-modification activities encompassed by the "harm" regulation. Instead, Congress responded in a far more limited manner that was premised on the regulation's continued existence. It did so by providing relief from the "take" prohibition in the specific context of the exemption mechanism it added in Section 7(h) of the Act, 16 U.S.C. 1536(h), which permits a project that would otherwise violate Section 7(a)(2) to go forward if it is authorized by a specially constituted Endangered Species Committee. See 16 U.S.C. 1536(e)-(o). Recognizing that an exemption from Section 7(a)(2) would not remove a project from the "take" prohibition in Section 9(a), Congress included Section 7(o) in the Act to provide (emphasis added):

Notwithstanding sections 4(d) and 9(a) of this Act *or any regulations promulgated pursuant to such sections*, any action for which an exemption is granted under subsection (h) of this section shall not be considered a *taking* of any endangered or threatened species with respect to any activity which is necessary to carry out such action.

Pub. L. No. 95-632, § 3, 92 Stat. 3759 (codified at 16 U.S.C. 1536(o) (Supp. III 1979)).¹⁹

Against the backdrop of this Court's discussion of the "harm" regulation in *TVA v. Hill* only five months earlier, as

¹⁹ The House Report explained that this provision (which was then contained in Section 7(k)(2) of the bill, see H.R. Rep. No. 1625, *supra*, at 51) was included "in recognition of the fact that even though a project might be exempted from the requirements of section 7, section 9 of the act would still prohibit the 'taking' of any endangered animal species." H.R. Rep. No. 1625, *supra*, at 25.

well as the specific discussion of that regulation in the legislative history of the 1978 amendments, the reference in the new Section 7(o) to "regulations promulgated pursuant to [section 9(a)]" plainly encompasses the "harm" regulation.²⁰ Yet far from disapproving that regulation or the interpretation of "harm" it embodied, Congress instead carved out only a narrow exception to the "take" prohibition and its implementing regulations and otherwise left those regulations in place.

5. Following the 1978 amendments to the Act, the Secretary revised the "harm" regulation in 1981 to clarify that it applies only to significant habitat modification or degradation that actually kills or injures a species. See page

²⁰ During floor consideration of the bill, the House, by a roll-call vote of 231-157, adopted an amendment that would have entirely exempted the Tellico Dam Project from the Act and also would have provided that any "harassment, harm, killing or wounding" of any endangered or threatened species attributable to the construction or operation of the project would not be considered to be a taking under Section 9(a)(1). 124 Cong. Rec. 38,148 (1978); see *id.* at 38,150-38,151. The Senate bill did not contain such a provision. The Conference Committee adopted and Congress enacted a compromise that called for expedited consideration of the Tellico Dam Project under the special exemption provisions added to Section 7. See Pub. L. No. 95-632, § 5, 92 Stat. 3761 (codified at 16 U.S.C. 1539(i)(1) (Supp. III 1979)); the Endangered Species Committee subsequently declined to grant an exemption, see Congressional Research Service, Senate Comm. on Environment and Public Works, 97th Cong., 2d Sess., *A Legislative History of the Endangered Species Act of 1973, as amended*, at Part V, pp. 1235-1236 (Comm. Print 1982). Congress thereafter directed TVA to complete construction and operation of the Tellico Dam and Reservoir, "notwithstanding the provision of 16 U.S.C. chapter 35 [the ESA], or any other law." Pub. L. No. 96-69, Tit. IV, 93 Stat. 449. H.R. Conf. Rep. No. 1804, 95th Cong., 2d Sess. 24-25 (1978). The special provision in the ESA for expedited consideration of the Project was then repealed (and replaced by another provision in 16 U.S.C. 1539(i) that is of no relevance here) by Section 6(5) of the Endangered Species Act Amendments of 1982, Pub. L. No. 97-304, 96 Stat. 1424.

6, *supra*. Congress then amended the Act once again in the Endangered Species Act Amendments of 1982, Pub. L. No. 97-304, 96 Stat. 1411. In a number of respects, those amendments further reinforce the validity of the "harm" regulation.

a. Of particular relevance to this case, Congress affirmatively acted in 1982 to lessen the restriction imposed by Section 9's take prohibition by authorizing the Secretary to issue permits under Section 10 to allow a taking that is "incidental to, and not the purpose of, the carrying out of an otherwise lawful activity." 16 U.S.C. 1539(a)(1)(B) (as added by Pub. L. No. 97-304, § 6, 96 Stat. 1422). The background and text of that provision show that Congress, like the Secretary, understood Section 9 to prohibit actions that cause a "take" through habitat modification.

The House Report made clear that "by use of the word 'incidental' the Committee intend[ed] to cover situations in which it is known that a taking will occur if the other activity is engaged in but such taking is incidental to, and not the purpose of, the activity." H.R. Rep. No. 567, 97th Cong., 2d Sess. 31 (1982). Thus, "incidental" was not intended to cover simply inadvertent takings of a listed species that might occur in conjunction with, *e.g.*, the trapping or hunting of a nonlisted species. Rather, it was intended to include takings that are known ahead of time to be a consequence of an otherwise lawful activity—precisely the situation that arises when there are incidental takings through land development or other types of habitat modification or degradation.

The applicability of the incidental take permit process to habitat modification is also reflected in the text of Section 10 that describes the "conservation plan" that must be prepared by an applicant. See 16 U.S.C. 1539(a)(2). In the conservation plan, the applicant must specify, *inter alia*, the "impact" that is likely to result from the taking and what steps the applicant will carry out to "minimize and mitigate" such impacts. 16 U.S.C. 1539(a)(2)(A)(i) and (ii); see also 16 U.S.C. 1539(a)(2)

(B)(i) and (ii). The focus on minimization and mitigation demonstrates that Congress was concerned not merely with inadvertent takings that might occur during hunting or trapping, but also with those having varying degrees of impact that could be determined ahead of time and controlled—that is, actions such as habitat modification that can often be tailored in their scope, timing, or location. Thus, based on the statutory text that Congress enacted in 1982 to add flexibility to Section 9's take prohibition, it is all the more reasonable for the Secretary to interpret the category of permitted "takes"—those that are merely "incidental" to otherwise lawful activity—to encompass habitat modification or degradation that actually kills or injures protected wildlife. Congress's enactment of a detailed mechanism for permitting such activities under specified conditions weighs against a construction of the prohibition that would not bar those activities in the first place.

The legislative history shows, moreover, that Congress had incidental takes through habitat modification specifically in mind when it created the Section 10 incidental take program. The permit process was described in the Senate Report as being modeled after the response to a specific situation in San Mateo County, California, in which the "taking" of endangered butterflies was incidental to "the development of some 3000 dwelling units" on a site inhabited by the species—*i.e.*, was incidental to habitat modification. S. Rep. No. 418, 97th Cong., 2d Sess. 10 (1982).²¹ The Conference Report similarly

²¹ The cited development is described further in *Friends of Endangered Species, Inc. v. Jantzen*, 760 F.2d 976 (9th Cir. 1985); *Endangered Species Act: Hearings Before the Subcomm. on Fisheries and Wildlife Conservation and the Environment of the House Comm. on Merchant Marine and Fisheries*, 97th Cong., 2d Sess. 331-335 (1982) [1982 House Hearings]. Not surprisingly, that housing development project received the first Section 10 incidental take permit issued by the FWS. See generally Timothy Beatley, *Habitat Conservation Planning* 23-24, 54-68 (Univ. of Texas Press 1994).

discussed the San Mateo project in detail, noting that large portions of the butterflies' habitat was privately owned, that the County had conducted an exhaustive study of the location of the butterflies and "their food plants," and that the conservation plan developed through governmental and private efforts "preserves sufficient habitat to allow for enhancement of the survival of the species." See H.R. Conf. Rep. No. 835, 97th Cong., 2d Sess. 30-32 (1982).²²

²² In discussing the significance of the 1982 amendments, the court of appeals suggested (Pet. App. 11a) that the "key example" of the sort of problem Congress had in mind when it enacted Section 10(a)(1)(B) was the incidental take caused by a water intake associated with a proposed nuclear power plant. See *1982 House Hearings* at 358; *Endangered Species Act Amendments of 1982: Hearings Before the Subcomm. on Environmental Pollution of the Senate Comm. on Environment and Public Works*, 97th Cong., 2d Sess. (1982) 299-303 [*1982 Senate Hearings*]. The nuclear power plant would have resulted in a taking because it would have caused the "entrainment or impingement" of Shortnose Sturgeon eggs, larvae or adults. *1982 House Hearings* at 358. The court of appeals suggested that such a taking is not the result of "habitat modification" and that the conservation plan required by Section 10(a) made the most sense for this type of incidental "take." Pet. App. 12a. Both suggestions are faulty.

First, construction and operation of a water intake structure is appropriately characterized as "habitat modification" within the meaning of 50 C.F.R. 17.3. See, e.g., *United States v. Glenn-Colusa Irrigation Dist.*, 788 F. Supp. 1126, 1133 (E.D. Cal. 1992) (water district's pumping "harms" fish within the meaning of 50 C.F.R. 17.3 by creating water velocity that causes salmon to be pinned or battered against screens or by diverting fish into channels full of predators).

Second, there is no foundation for the court of appeals' suggestion that the nuclear power plant example played the primary instigating role in Congress's authorization of incidental take permits. As explained in the text, the congressional reports and hearings demonstrate that Congress had takes by habitat modification primarily in mind. Moreover, Section 10 applies only to non-federal projects. The proposed nuclear power plant, however, required a federal permit and thus had to meet the Section 7(a)(2) "jeopardy" and "critical habitat" restrictions. Northeast Utilities sought an amendment to the ESA because its project would have remained subject to

Also, in the hearings that preceded enactment of the 1982 amendments, objections to the regulatory definition of "harm" were once again voiced.²³ Similarly, the Ninth Circuit's decision in *Palila v. Hawaii Dep't of Land & Natural Resources*, 639 F.2d 495 (1981) (*Palila I*), finding a prohibited taking based on "harm" caused by habitat modification, was before Congress during its consideration of the 1982 amendments. 1982 *House Hearings* at 273, 291, 331. It therefore is not surprising that the Senate Report specifically noted that "section 9 * * * prohibits the taking of any endangered fish or wildlife, including harm which may occur as a result of habitat modification." S. Rep. No. 418, *supra*, at 26 (emphasis added);²⁴ see also H.R. Rep. No. 567,

the take prohibition in Section 9 even if it had complied with Section 7(a)(2). 1982 *House Hearings* at 358-360; 1982 *Senate Hearings* at 297-309. Northeast proffered its illustration to support its proposal that the ESA be amended to provide that a project be immunized from Section 9 whenever the Secretary issues a "no jeopardy" opinion in connection with Section 7 consultation on a project—a problem separately addressed by Congress's enactment of Section 7(b)(4) and (o)(2), discussed at pages 38-39, *infra*. Northeast explicitly suggested, however, that "where no Section 7 consultation has been obtained because there is no federal involvement in the activity, Section 9 would remain fully operative." 1982 *House Hearings* at 360.

²³ See 1982 *House Hearings* at 240, 262, 273, 328-329, 331, 343; see also 1982 *Senate Hearings* at 320-321.

²⁴ The passage in the Senate Report quoted in the text was part of the discussion of an amendment to Section 9(a)(2) (now codified, as later amended, at 16 U.S.C. 1538(a)(2)(B)), that makes it unlawful to remove and reduce to possession endangered species of *plants* on federal lands. See Pub. L. No. 97-304, § 9(b)(i), 96 Stat. 1426. The Report explained that although Section 9 "prohibits the taking of endangered species of fish or wildlife," it "does not * * * prohibit the taking of endangered plants," and that, as a result, "harm to species of plants" that "may occur as a result of habitat modification" would not be within the scope of the new prohibition against removal of plants from federal lands. S. Rep. No. 418, *supra*, at 26.

supra, at 15 (incidental take permit provisions will respond to "situations where the unintentional taking may occur on private lands owned by a developer" and assist "private land owners" who present a "conservation plan"); *id.* at 31 (amendment to Section 10 addresses concerns of "private landowners").

b. Congress also amended Section 7 of the Act in 1982 to provide for the Secretary to issue an incidental take statement as part of the biological opinion that he prepares at the conclusion of the formal consultation process under Section 7(a)(2). See 16 U.S.C. 1536(b)(4). The terminology of that provision directly parallels that of the incidental take permit provision added to Section 10, discussed above, and for that reason it likewise confirms that incidental takes include those brought about by habitat modification or degradation of the sort described in the "harm" regulation. In addition, Congress enacted a new Section 7(o)(2) of the Act to provide that "[n]otwithstanding sections 4(d) and 9(a)(1)(B) and (C) or any regulation promulgated to implement either such section," any "taking that is in compliance with the terms and conditions specified in a written [incidental take] statement provided under subsection (b)(4)(iii) [of Section 7] shall not be considered to be a taking of the species concerned." Pub. L. No. 97-304, § 4(a)(7), 96 Stat. 1420 (emphasis added) (codified at 16 U.S.C. 1536 (o)(2) (1982)).²⁵ By virtue of the emphasized

Thus, Congress once again tailored the Act with specific reference to the "harm" regulation.

²⁵ See H.R. Rep. No. 567, *supra*, at 26-27. The same provision of the 1982 amendments also reenacted (as Section 7(o)(1) of the ESA) the exception from the take prohibition in Section 9(a) and implementing regulations for activities that are covered by an exemption granted under Section 7(h) of the Act. See 16 U.S.C. 1536(o)(1).

In 1986, subsection (b)(4) of Section 7 was amended to move the reference to the terms and conditions in the incidental take statement from subsection (b)(4)(iii) to a new subsection (b)(4)(iv) (where they now appear), and

language, Congress once again specifically recognized in the text of the Act itself the "regulation[s]" promulgated to "implement," *inter alia*, the prohibition in Section 9(a)(1)(B) against the taking of protected species.²⁶ In light of the

subsection (b)(4)(iii) was revised to provide for the incidental take statement to specify, in the case of marine mammals, the measures necessary to comply with Section 101(a)(5) of the Marine Mammal Protection Act (16 U.S.C. 1371(a)(5)) with regard to such taking. Pub. L. No. 99-659, § 411(b)(4)-(6), 100 Stat. 3742 (codified at 16 U.S.C. 1536(b)(4)(iii) and (iv)). Corresponding amendments were made in 1986 to Section 7(o). These amendments consisted of: the addition of Sections 101 and 102 of the MMPA (16 U.S.C. 1371 and 1372) to the "notwithstanding" clause at the beginning of Section 7(o); the substitution of subsection (b)(iv) for subsection (b)(iii) in Section 7(o)(2); and the insertion of the word "prohibited" before "taking" in Section 7(o)(2). See Pub. L. No. 99-659, § 411(c), 100 Stat. 3742. These amendments are reflected in the 1988 codification of Section 7(o)(2). See 16 U.S.C. 1536(o)(2); see also 132 Cong. Rec. 31,294-31,295, 32,185 (1986) (describing 1986 amendments to ESA).

²⁶ There is yet another feature of the 1982 amendments (involving "experimental populations") that is premised upon and accommodates the "harm" regulation's inclusion of certain habitat modifications within the statutory take prohibition. The Senate Report explained that the Secretary already had the authority to establish "experimental populations" to aid recovery of a species, such as by reestablishment in the wild of captive-bred animals. The Report continued: "Other Federal agencies, State officials and private individuals, however, are reluctant to allow experimental or new populations of endangered species to be established on their land for fear that the section 7 jeopardy standard, critical habitat designation, and the section 9 taking prohibitions will be applied to limit their land management options." S. Rep. No. 418, *supra*, at 3 (emphasis added). Congress's response was not to repeal the application of Section 9 to all "land management" activities, which is the result the court of appeals reached. Instead, Congress established a special mechanism in a new Section 10(j) to add still further flexibility to the take prohibition in the particular context of experimental populations. See *id.* at 3-4, 7-9; Pub. L. No. 94-307, § 6(6), 96 Stat. 1424 (codified at 16 U.S.C. 1539(j)). Congress provided, *inter alia*, for experimental populations of endangered species to be treated as threatened species, see 16 U.S.C. 1539(j)(2)(C), which has the effect of

prominence during congressional consideration of the 1982 amendments of the "harm" regulation and the taking of species caused by habitat modification, Section 7(o)(2)—together with the provisions elsewhere in Section 7 and in Section 10 for allowing such incidental takings in particular circumstances—must be regarded as a congressional ratification of the interpretation of "harm" embodied in the Secretary's regulation.

C. The Court of Appeals' Reasons for Rejecting the Secretary's Reasonable Interpretation of "Harm" Are Without Merit

We have explained in Points A and B that the interpretation of "harm" set forth in 50 C.F.R. 17.3 is affirmatively supported by the text and structure of the ESA, its legislative history, this Court's decision in *TVA v. Hill*, and the subsequent amendments to the Act in 1978 and 1982. The court of appeals failed to appreciate the strength of each of those considerations, and we have already answered its efforts to minimize them in the course of our discussion above.

The court of appeals advanced several additional objections to the Secretary's interpretation, based on the overlap it believed the Secretary's interpretation would create between Sections 7 and 9 of the Act and the potential breadth it ascribed to that interpretation. Those remaining objections are without merit.

removing such populations from the automatic coverage of the take prohibition in Section 9(a)(1)(B) itself and instead subjecting the application of that prohibition to experimental populations to the discretion of the Secretary under Section 4(d), 16 U.S.C. 1533(d). The experimental populations of gray wolves that were recently introduced into central Idaho and into Yellowstone National Park in Montana (and that are endangered in those areas) are covered by that special provision. See 50 Fed. Reg. 60,252 (1994).

1. Contrary to the court of appeals' interpretation, the Secretary's interpretation of "harm" for purposes of the Section 9 prohibition against the taking of listed species does not impose on private parties the equivalent of federal agencies' Section 7 obligation to avoid destruction or adverse modification of critical habitat. The Secretary's "harm" regulation prohibits only habitat modification that causes actual death or injury, and does not prohibit habitat degradation that merely retards recovery. See *Palila II*, 852 F.2d at 1108-1110.

The court of appeals incorrectly suggested (Pet. App. 92a-93a) that because "critical habitat" is defined as areas "essential to the conservation of the species," any alteration or use of land designated as "critical habitat" necessarily will result in prohibited "harm" to the species. That is not true. The obligations on federal agencies arising from Section 7 are more extensive than those imposed on such agencies and other persons by Section 9. An action may result in the destruction or adverse modification of critical habitat, and yet not result in a taking of an endangered species because it does not "actually kill or injure wildlife." For example, where there is an area designated as critical habitat for a species but not currently inhabited by the species,²⁷ a federal agency may be prevented by Section 7 from authorizing or carrying out action in the area, such as the harvesting of trees that, if allowed to stand, would likely attain the attributes of suitable

²⁷ As explained above, see note 5, *supra*, critical habitat includes areas that are not occupied by the species, but are nonetheless "essential to the conservation of the species." 16 U.S.C. 1532(5). Conservation means the use of all methods necessary to recover the species so that it may be removed from the lists of species protected by the ESA. 16 U.S.C. 1532(3). Critical habitat for many species therefore includes areas the protection of which is crucial to the species' recovery but not to its bare survival.

habitat for the species. Harvest of a similar area would not, however, be prevented by the Section 9 "take" prohibition.²⁸

At the same time, the Section 9 "take" prohibition may restrict conduct that would not violate Section 7. A particular action may cause a taking of individual members of a listed species, but not adversely affect the species as a whole to such an extent that it violates the "jeopardy" prohibition or critical habitat restrictions in Section 7(a)(2). For example, interference with the spawning of particular fish would constitute prohibited "harm" to those fish because of its interference with their breeding, but its transitory nature and spatially circumscribed effect would likely prevent it from triggering a determination of "jeopardy" to the species or "adverse modification" of its critical habitat. Also, modification of habitat that actually kills or injures wildlife (and therefore constitutes a prohibited "take"), but is not within critical habitat designated under Section 4,²⁹ does not

²⁸ Part of the reason for the court's erroneous analysis was its apparent misinterpretation of critical habitat as "simply another way of referring to habitat modifications so significant to the species that they might lead to death (or at least some very serious injury) for members of the species." See Pet. App. 92a. As noted above (see notes 5 and 27 *supra*), however, in appropriate cases, unoccupied potential habitat may be designated as critical for a listed species in order to provide for "natural range expansion into adjacent suitable habitat." 49 Fed. Reg. 38,904 (1984). Indeed, designation of critical habitat is most likely to furnish meaningful additional protections for listed species when federal actions are likely to take place that will impact upon suitable, but unoccupied, habitat.

²⁹ Under Section 4 of the ESA, the Secretary's decision whether to designate critical habitat for a species is not solely a biological judgment. The Secretary is also required to consider and weigh "the economic impact, and any other relevant impact," of such a designation. 16 U.S.C. 1533(b)(2).

Moreover, the Secretary "may exclude any area from critical habitat if he determines that the benefits of such exclusion outweigh the benefits of specifying such area as part of the critical habitat, unless he determines based on the best scientific and commercial data available, that the failure

violate Section 7 unless it rises to the level of jeopardizing the continued existence of the listed species.

Thus, Sections 9 and 7 are not rendered coextensive by the "harm" regulation. They do overlap to some degree, however, as do many provisions of the ESA. Indeed, it is by design that various sections of the ESA provide for protection of endangered and threatened species through a variety of measures. For example, within Section 7(a)(2) itself, the determination whether a federal action is "likely to jeopardize the continued existence" of a listed species may overlap with the determination whether the action is likely to "result in the destruction or adverse modification" of habitat designated by the Secretary as "critical." 16 U.S.C. 1536(a)(2). In a similar vein, the fact that an action that would "jeopardize the continued existence" of a listed species or "destroy or adversely modify" its critical habitat in contravention of Section 7 may also result in a taking of the species in violation of Section 9 does not render either Section superfluous. Nor does any such overlap indicate that the Secretary's interpretation of "harm" is unreasonable.

to designate such area as critical habitat will result in the extinction of the species concerned." 16 U.S.C. 1533(b)(2). Designation of critical habitat is authorized only "to the maximum extent prudent." 16 U.S.C. 1533(b)(6)(C)(ii). By regulation, "[a] designation of critical habitat is not prudent *when one or both* of the following situations exist: (i) The species is threatened by taking or other human activity, and identification of critical habitat can be expected to increase the degree of such threat to the species, or (ii) Such designation of critical habitat would not be beneficial to the species." 50 C.F.R. 424.12(a)(1)(i) and (ii) (emphasis added). The factors to be considered in individual cases include whether "designation of critical habitat may generate public antagonism that could lead to vandalism" of habitat, and whether there would be a "net benefit to the conservation of the species and their habitats." 49 Fed. Reg. 38,903 (1984).

It is significant in this regard that *both* Section 7 and Section 9 apply to federal agencies.³⁰ As we have explained above (see pages 32, 38, *supra*), Congress addressed their interaction and provided for their accommodation in Section 7(b) and (o) of the Act, specifically recognizing that authorization or exemption of a project under Section 7 does *not* exempt it from the taking prohibition in Section 9.³¹ The court of appeals therefore erred in relying on the existence of critical habitat restrictions in Section 7, which do not even apply to private persons (except when such persons apply for a federal permit or license), as a reason for also construing Section 9 not to apply to habitat modification or degradation by private parties—even when it actually kills or injures protected wildlife.

2. Far from applying the proper standard for determining whether a regulation is invalid on its face (*i.e.*, whether there are any circumstances under which the regulation would be valid), the court of appeals took the opposite approach—it invalidated the “harm” regulation on the basis of imagined applications that were not before it. That analytical error manifested itself in a number of ways.

³⁰ The “take” prohibition in Section 9(a)(1)(B) applies to “any person,” 16 U.S.C. 1538(a)(1)(B), and “person” is defined to include any “department, or instrumentality of the Federal Government.” 16 U.S.C. 1532(13).

³¹ Section 7(o) confirms Congress’ awareness that a Section 9 “take” may occur even though the action does not violate Section 7(a)(2). Thus, Section 7(o)(2) provides that any taking that is in compliance with the terms and conditions of an “incidental take” statement (see 16 U.S.C. 1536 (b)(4)(iv); page 38, *supra*) shall not be considered a prohibited take, and Section 7(o)(1) provides that any action granted an exemption under Section 7(h) shall not be considered a “taking” of listed species. See H.R. Rep. No. 1625, *supra*, at 25 (Section 7(o)(1) was included “in recognition of the fact that even though a project might be exempted from the requirements of section 7, section 9 of the act would still prohibit the ‘taking’ of any endangered animal species”).

a. The court of appeals failed to take into account the fact that the requirement of showing "actual death or injury" directly traceable to habitat-disturbing actions imposes significant limitations on the regulation's application. When the Secretary revised the "harm" regulation in 1981, he emphasized the circumscribed reach of its second sentence. He explained that the

additional language makes it clear that habitat modification or degradation, standing alone, is not a taking pursuant to section 9. To be subject to section 9, the modification or degradation must be *significant*, must *significantly impair essential* behavioral patterns, and must result in *actual* injury to a protected wildlife species. The word "impair" was substituted for "disrupt" to limit harm to situations where a behavioral pattern was adversely affected and not simply disturbed on a temporary basis with no consequent injury to the protected species.

46 Fed. Reg. 54,750 (1981) (J.A. 72).

The court of appeals also overlooked the cases in which courts have applied the regulation in an appropriate manner.³² The courts that have found violations of the regulation have recognized that it applies only where actual injury or death directly traceable to the actions of the defendant has occurred or will occur. See, e.g., *Palila I*, 639 F.2d at 498; *Palila II*, 852 F.2d at 1108-1110; *Sierra Club v. Yeutter*, 926 F.2d 429 (5th Cir. 1991) (enjoining Forest Service from even-aged lumber practices following documentation of dramatic decline in red-cockaded woodpecker colonies found traceable to lumbering

³² The fact that other courts of appeals have upheld particular applications of the challenged regulation should weigh heavily in favor of upholding its facial validity. See *National Treasury Employees Union (NTEU) v. Bush*, 891 F.2d 99, 101 (5th Cir. 1989).

practices); *United States v. Glenn-Colusa Irrigation Dist.*, 788 F. Supp. 1126, 1133 (E.D. Cal. 1992) (water district's pumping creates water velocity that causes salmon to be pinned or battered against screens or diverts fish into channels full of predators).

By the same token, courts have correctly interpreted the "harm" prohibition not to extend to activity that only potentially, as opposed to actually, causes (or will cause) harm. *American Bald Eagle v. Bhatti*, 9 F.3d 163, 166 (1st Cir. 1993) ("courts have granted injunctive relief only where petitioners have shown that the alleged activity has actually harmed the species or if continued will actually, as opposed to potentially, cause harm to the species"); see also *National Wildlife Fed'n v. Burlington N. R.R.*, 23 F.3d 1508, 1511-1513 (9th Cir. 1994) (corn spill was localized in nature and did not constitute significant habitat modification or cause significant impact to grizzly bears); *Pyramid Lake Paiute Tribe of Indians v. United States Dep't of Navy*, 898 F.2d 1410, 1420 (9th Cir. 1990) (evidence does not establish that diversion of water actually caused spawning problems); *National Wildlife Fed'n v. National Park Serv.*, 669 F. Supp. 384 (D. Wyo. 1987) (insufficient evidence of injury from plan designed to reduce conflicts between humans and grizzly bears); *Morrill v. Lujan*, 802 F. Supp. 424, 430-433 (S.D. Ala. 1992) (insufficient evidence that destruction of habitat would cause injury to mouse).

b. The court of appeals also suggested that the interpretation of "harm" in the regulation is overly broad because it is directed at harm flowing from the withholding of a benefit, rather than physical intrusions that wound an individual member of an endangered species. Pet. App. 3a-4a. The panel majority's statement upon denial of rehearing en banc reiterated that view and pointed to the commentary accompanying the promulgation of the "harm" regulation, which stated that an "act" is inclusive of either commissions

or "omissions" that would be prohibited by Section 9. Pet. App. 91a; 46 Fed. Reg. 54,750 (1981) (J.A. 72). An "omission" constitutes an "act" prohibited by Section 9, however, only if there is a legal duty to act and the failure to discharge that duty causes significant habitat modification or degradation that in turn leads to death or injury to protected wildlife.³³ Such an omission might arise, for example, from a duty to maintain a licensed dam structure. A maintenance omission causing a dam breach could significantly destroy habitat and cause death or injury to a listed species as a result. The commentary cited by the majority below does not encompass passive acts of nonfeasance or create a duty (where none otherwise would exist) to maintain a listed species' habitat.

c. The court of appeals expressed the view that the "harm" regulation reflects an improbable relation to congressional intent because it might forbid any modification of an area between 35 and 42 million acres in size, which "some scientists" believed was necessary to the survival of the threatened grizzly bear—even though the court acknowledged that such broad coverage represented the views of an "adherent of aggressive protection." Pet. App. 6a.³⁴ By

³³ Cf. *United States v. FMC Corp.*, 572 F.2d 902, 906-907 (2d Cir. 1978) (rejecting defendants' contention that liability for a "take" under the Migratory Bird Treaty Act cannot be imposed for failure to act to prevent a chemical from escaping into a pond and killing birds); *Morissette v. United States*, 342 U.S. 246, 255 (1952) (public welfare offenses may encompass inaction where the law imposes a duty).

³⁴ In its statement upon denial of rehearing en banc, the panel majority expressed the view that if millions of acres are necessary to the survival of grizzly bears, then any material curtailment necessarily would involve death for members of the species. Pet. App. 91a. The majority also stated, however, that it did not endorse the specific claim of what acreage might actually be necessary for the grizzlies. *Id.* at 91a n.1. That qualification is significant, because it is unrealistic to assume that a prohibited taking could be found with respect to any and all habitat modification activities based on such evidence.

focusing only on extreme examples and the potential for unreasonably broad application of the regulation to specific species, the court of appeals failed to heed the limited nature of review accorded in a facial challenge.

The panel majority also cited the Special Rule Concerning Take of the Threatened Coastal California Gnatcatcher, published at 58 Fed. Reg. 65,088 (1993), as evidence that the "harm" regulation entails the Secretary's exercise of power over large tracts of land. Pet. App. 94a-95a. That reliance was misplaced, however, because the cited reference (58 Fed. Reg. 65,090 (1993)) is to a *state* planning process that encompasses 3.8 million acres. That area does not equate to gnatcatcher habitat, nor does the reference mean, as the panel majority suggested (Pet. App. 94a-95a), that the "take" prohibition would apply to all habitat modification activities within that area. FWS's issuance by special rule of an incidental take authorization for the gnatcatcher was largely the result of special circumstances in California whereby state law, the Natural Community Conservation Planning Act (NCCP), Cal. Fish & Game Code §§ 2800-2840 (West 1995), provides for a regional planning program for establishing systematic evaluation and restoration of the State's native habitats. The

The inherent exaggeration of the regulation's impact based on that illustration is also reflected in the fact that the referenced 35 to 42 million-acre figure includes grizzly bear habitat in Canada. Rocky Barker, *Saving All The Parts: Reconciling Economics and the Endangered Species Act* 34-35 (Island Press 1993). And much of the habitat in the continental United States is federal, not private, land. *Id.* at 41. For example, only one percent of the land in the Greater Yellowstone Ecosystem, the largest bear habitat area in the continental United States, is private land. *Ibid.* Furthermore, the court of appeals failed to note that the cited source noted that grizzly bear numbers have continued to rise despite the shrinking of their habitat. *Id.* at 32. The author expressed concern, however, that the population increase will cause management complacency and that not enough is being done to ensure long-term survival. *Ibid.*

purpose of the NCCP program is to provide for regional protection and perpetuation of natural wildlife diversity (not limited to species listed under the ESA), while allowing compatible land use and appropriate development and growth. Because the state plan incorporates criteria that meet ESA incidental take permit standards (see 16 U.S.C. 1539(a)(2)), FWS, by its special rule, issued a blanket incidental take authorization for projects that comply with the criteria in the state plan. Thus, FWS's special rule effectively eliminates duplication of state, local and federal efforts and serves to reduce, rather than extend, federal involvement over the land included in the state planning process.

The majority's erroneous characterization of the import of the gnatcatcher plan also reflected a misunderstanding of conservation plan requirements under Section 10 of the ESA. Specifically, its concern about the breadth of the "harm" regulation failed to appreciate that Congress's creation of the Section 10 permit program adds flexibility to the "take" prohibition by enabling private owners' land uses to be accommodated in a way that protects listed species. By altogether removing private habitat modification and degradation that kills or injures protected wildlife from the reach of Section 9, the court of appeals' interpretation would upset the careful balance intended by Congress among the many competing interests of private landowners, governmental entities, and the purposes of the ESA.

3. In sum, the court of appeals erred when it invalidated the Secretary's interpretation of the statutory term "harm" based on an extravagant reading and speculative applications of the regulation. It thereby failed to respect both the limitations imposed by the Secretary's interpretation of his own regulation and the nature of a facial challenge to a regulation. Moreover, the Secretary's interpretation, unlike that of the court of appeals, furthers the object of the Act as a whole. The ESA is intended to be a powerful yet workable law

that accords substantial protection to listed species. Congress was aware that the greatest threat to listed species is the destruction of their natural habitat, see *TVA v. Hill*, 437 U.S. at 179, and the purposes of the Act include providing a means whereby the ecosystems upon which endangered and threatened species depend may be conserved. 16 U.S.C. 1531(b). The "harm" regulation furthers that purpose by interpreting the Act to bar significant habitat modification or degradation that actually kills or injures protected wildlife.

Furthermore, the Secretary's interpretation of "harm" dovetails with Congress's decision to temper the impact of the "take" prohibition on private land uses by enacting the 1982 amendments to allow the issuance of an incidental take permit in circumstances in which an acceptable habitat conservation plan has been prepared. The Section 10(a) process has resulted in the submission of more than 100 conservation plans and the approval of more than 30. See U.S. General Accounting Office, *Endangered Species Act: Information on Species Protection on Nonfederal Lands* at 9 (Dec. 1994). The first (and prototype) conservation plan was the plan, extensively discussed in the committee reports on the 1982 amendments, that was fashioned to protect listed butterflies in the context of habitat modification resulting from a housing development in California. See pages 35-36, *supra*; see also Pet. 23-25; note 4, *supra*. The interpretation of "take" and "harm" adopted by the court of appeals would substantially undermine such balanced and cooperative efforts to protect species while at the same time providing for development and productive land use.

CONCLUSION

The judgment of the court of appeals should be reversed.

Respectfully submitted.

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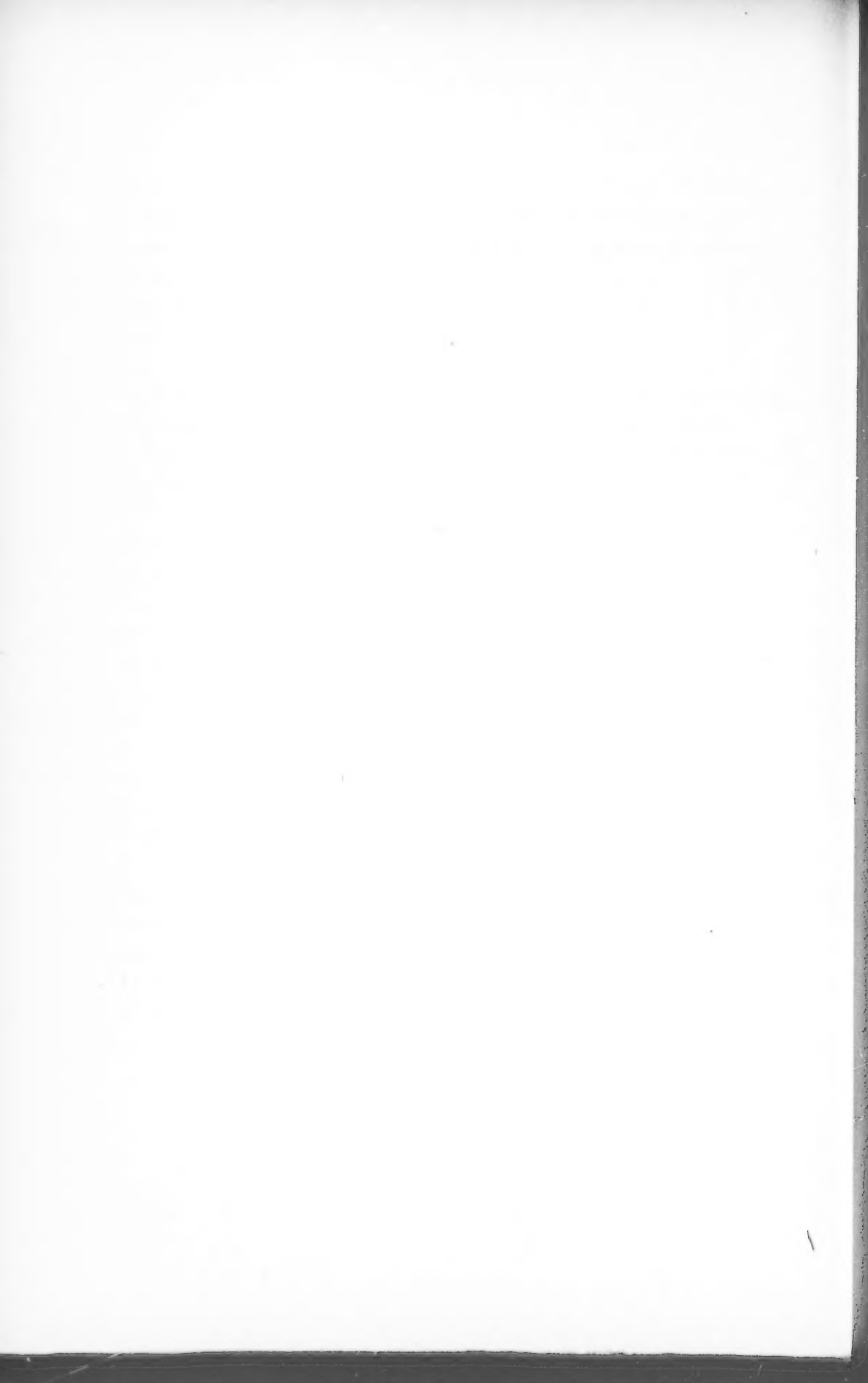
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APPENDIX

The Endangered Species Act of 1973, as amended and codified at 16 U.S.C. 1531 *et seq.*, provides in relevant part:

§ 1531. Congressional findings and declaration of purposes and policy

(a) Findings

The Congress finds and declares that—

(1) various species of fish, wildlife, and plants in the United States have been rendered extinct as a consequence of economic growth and development untempered by adequate concern and conservation;

(2) other species of fish, wildlife, and plants have been so depleted in numbers that they are in danger of or threatened with extinction;

(3) these species of fish, wildlife, and plants are of esthetic [sic], ecological, educational, historical, recreational, and scientific value to the Nation and its people;

(4) the United States has pledged itself as a sovereign state in the international community to conserve to the extent practicable the various species of fish or wildlife and plants facing extinction, pursuant to—

(1a)

2a

(A) migratory bird treaties with Canada and Mexico;

(B) the Migratory and Endangered Bird Treaty with Japan;

(C) the Convention on Nature Protection and Wildlife Preservation in the Western Hemisphere;

(D) the International Convention for the Northwest Atlantic Fisheries;

(E) the International Convention for the High Seas Fisheries of the North Pacific Ocean;

(F) the Convention on International Trade in Endangered Species of Wild Fauna and Flora; and

(G) other international agreements; and

(5) encouraging the States and other interested parties, through Federal financial assistance and a system of incentives, to develop and maintain conservation programs which meet national and international standards is a key to meeting the Nation's international commitments and to better safeguarding, for the benefit of all citizens, the Nation's heritage in fish, wildlife, and plants.

(b) Purposes

The purposes of this chapter are to provide a means whereby the ecosystems upon which endangered species and threatened species depend may be conserved, to provide a program for the conservation of

such endangered species and threatened species, and to take such steps as may be appropriate to achieve the purposes of the treaties and conventions set forth in subsection (a) of this section.

(c) Policy

(1) It is further declared to be the policy of Congress that all Federal departments and agencies shall seek to conserve endangered species and threatened species and shall utilize their authorities in furtherance of the purposes of this chapter.

(2) It is further declared to be the policy of Congress that Federal agencies shall cooperate with State and local agencies to resolve water resource issues in concert with conservation of endangered species.

* * * * *

§ 1533. Determination of endangered species and threatened species

(a) Generally

(1) The Secretary shall by regulation promulgated in accordance with subsection (b) of this section determine whether any species is an endangered species or a threatened species because of any of the following factors:

(A) the present or threatened destruction, modification, or curtailment of its habitat or range;

(B) overutilization for commercial, recreational, scientific, or educational purposes;

(C) disease or predation;

(D) the inadequacy of existing regulatory mechanisms; or

(E) other natural or manmade factors affecting its continued existence.

* * * * *

(3) The Secretary, by regulation promulgated in accordance with subsection (b) of this section and to the maximum extent prudent and determinable—

(A) shall, concurrently with making a determination under paragraph (1) that a species is an endangered species or a threatened species, designate any habitat of such species which is then considered to be critical habitat; and

(B) may, from time-to-time thereafter as appropriate, revise such designation.

(b) Basis for determinations

(1)(A) The Secretary shall make determinations required by subsection (a) (1) of this section solely on the basis of the best scientific and commercial data available to him after conducting a review of the status of the species and after taking into account those efforts, if any, being made by any State or foreign nation, or any political subdivision of a State or foreign nation, to protect such species, whether by predator control, protection of habitat and food supply, or other conservation practices, within any area under its jurisdiction, or on the high seas.

(B) In carrying out this section, the Secretary shall give consideration to species which have been—

(i) designated as requiring protection from unrestricted commerce by any foreign nation, or pursuant to any international agreement; or

(ii) identified as in danger of extinction, or likely to become so within the foreseeable future, by any State agency or by any agency of a foreign nation that is responsible for the conservation of fish or wildlife or plants.

(2) The Secretary shall designate critical habitat, and make revisions thereto, under subsection (a) (3) of this section on the basis of the best scientific data available and after taking into consideration the economic impact, and any other relevant impact, of specifying any particular area as critical habitat. The Secretary may exclude any area from critical habitat if he determines that the benefits of such exclusion outweigh the benefits of specifying such area as part of the critical habitat, unless he determines, based on the best scientific and commercial data available, that the failure to designate such area as critical habitat will result in the extinction of the species concerned.

* * * * *

(d) Protective regulations

Whenever any species is listed as a threatened species pursuant to subsection (c) of this section, the Secretary shall issue such regulations as he deems necessary and advisable to provide for the conservation of such species. The Secretary may by regulation prohibit with respect to any threatened species any act prohibited under section 1538(a) (1) of this title, in the case of fish or wildlife, or section 1538(a) (2) of this title, in the case of plants, with respect to endangered species; except that with respect to the taking of resident species of fish or

wildlife, such regulations shall apply in any State which has entered into a cooperative agreement pursuant to section 1535(c) of this title only to the extent that such regulations have also been adopted by such State.

* * * * *

§ 1536. Interagency cooperation

(a) Federal agency actions and consultations

(1) The Secretary shall review other programs administered by him and utilize such programs in furtherance of the purposes of this chapter. All other Federal agencies shall, in consultation with and with the assistance of the Secretary, utilize their authorities in furtherance of the purposes of this chapter by carrying out programs for the conservation of endangered species and threatened species listed pursuant to section 1533 of this title.

(2) Each Federal agency shall, in consultation with and with the assistance of the Secretary, insure that any action authorized, funded, or carried out by such agency (hereinafter in this section referred to as an "agency action") is not likely to jeopardize the continued existence of any endangered species or threatened species or result in the destruction or adverse modification of habitat of such species which is determined by the Secretary, after consultation as appropriate with affected States, to be critical, unless such agency has been granted an exemption for such action by the Committee pursuant to subsection (h) of this section. In fulfilling the requirements of this paragraph each agency shall use the best scientific and commercial data available.

(3) Subject to such guidelines as the Secretary may establish, a Federal agency shall consult with the Secretary on any prospective agency action at the request of, and in cooperation with, the prospective permit or license applicant if the applicant has reason to believe that an endangered species or a threatened species may be present in the area affected by his project and that implementation of such action will likely affect such species.

(4) Each Federal agency shall confer with the Secretary on any agency action which is likely to jeopardize the continued existence of any species proposed to be listed under section 1533 of this title or result in the destruction or adverse modification of critical habitat proposed to be designated for such species. This paragraph does not require a limitation on the commitment of resources as described in subsection (d) of this section.

(b) Opinion of Secretary

(1)(A) Consultation under subsection (a) (2) of this section with respect to any agency action shall be concluded within the 90-day period beginning on the date on which initiated or, subject to subparagraph (B), within such other period of time as is mutually agreeable to the Secretary and the Federal agency.

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(3)(A) Promptly after conclusion of consultation under paragraph (2) or (3) of subsection (a) of this section, the Secretary shall provide to the Federal agency and the applicant, if any, a written statement setting forth the Secretary's opinion, and a summary of the information on which the opinion is based, detailing how the agency action affects the species or

its critical habitat. If jeopardy or adverse modification is found, the Secretary shall suggest those reasonable and prudent alternatives which he believes would not violate subsection (a) (2) of this section and can be taken by the Federal agency or applicant in implementing the agency action.

(B) Consultation under subsection (a) (3) of this section, and an opinion issued by the Secretary incident to such consultation, regarding an agency action shall be treated respectively as a consultation under subsection (a) (2) of this section, and as an opinion issued after consultation under such subsection, regarding that action if the Secretary reviews the action before it is commenced by the Federal agency and finds, and notifies such agency, that no significant changes have been made with respect to the action and that no significant change has occurred regarding the information used during the initial consultation.

(4) If after consultation under subsection (a)(2) of this section, the Secretary concludes that—

(A) the agency action will not violate such subsection, or offers reasonable and prudent alternatives which the Secretary believes would not violate such subsection;

(B) the taking of an endangered species or a threatened species incidental to the agency action will not violate such subsection; and

(C) if an endangered species or threatened species of a marine mammal is involved, the taking is authorized pursuant to section 1371(a)(5) of this title;

the Secretary shall provide the Federal agency and the applicant concerned, if any, with a written statement that—

(i) specifies the impact of such incidental taking on the species,

(ii) specifies those reasonable and prudent measures that the Secretary considers necessary or appropriate to minimize such impact,

(iii) in the case of marine mammals, specifies those measures that are necessary to comply with section 1371(a)(5) of this title with regard to such taking, and

(iv) sets forth the terms and conditions (including, but not limited to, reporting requirements) that must be complied with by the Federal agency or applicant (if any), or both, to implement the measures specified under clauses (ii) and (iii).

(c) Biological assessment

(1) To facilitate compliance with the requirements of subsection (a) (2) of this section, each Federal agency shall, with respect to any agency action of such agency for which no contract for construction has been entered into and for which no construction has begun on November 10, 1978, request of the Secretary information whether any species which is listed or proposed to be listed may be present in the area of such proposed action. If the Secretary advises, based on the best scientific and commercial data available, that such species may be present, such agency shall conduct a biological assessment for the purpose of identifying any endangered species or threatened species which is likely to be affected by such action. Such assessment shall be completed

within 180 days after the date on which initiated (or within such other period as is mutually agreed to by the Secretary and such agency, except that if a permit or license applicant is involved, the 180-day period may not be extended unless such agency provides the applicant, before the close of such period, with a written statement setting forth the estimated length of the proposed extension and the reasons therefor) and, before any contract for construction is entered into and before construction is begun with respect to such action. Such assessment may be undertaken as part of a Federal agency's compliance with the requirements of section 102 of the National Environmental Policy Act of 1969 (42 U.S.C. 4332).

(2) Any person who may wish to apply for an exemption under subsection (g) of this section for that action may conduct a biological assessment to identify any endangered species or threatened species which is likely to be affected by such action. Any such biological assessment must, however, be conducted in cooperation with the Secretary and under the supervision of the appropriate Federal agency.

(d) Limitation on commitment of resources

After initiation of consultation required under subsection (a) (2) of this section, the Federal agency and the permit or license applicant shall not make any irreversible or irretrievable commitment of resources with respect to the agency action which has the effect of foreclosing the formulation or implementation of any reasonable and prudent alternative measures which would not violate subsection (a) (2) of this section.

(e) Endangered Species Committee

(1) There is established a committee to be known as the Endangered Species Committee (hereinafter in this section referred to as the "Committee").

(2) The Committee shall review any application submitted to it pursuant to this section and determine in accordance with subsection (h) of this section whether or not to grant an exemption from the requirements of subsection (a) (2) of this section for the action set forth in such application.

* * * * *

(h) Grant of exemption

(1) The Committee shall make a final determination whether or not to grant an exemption within 30 days after receiving the report of the Secretary pursuant to subsection (g) (5) of this section. The Committee shall grant an exemption from the requirements of subsection (a) (2) of this section for an agency action if, by a vote of not less than five of its members voting in person—

(A) it determines on the record, based on the report of the Secretary, the record of the hearing held under subsection (g) (4) of this section and on such other testimony or evidence as it may receive, that—

(i) there are no reasonable and prudent alternatives to the agency action;

(ii) the benefits of such action clearly outweigh the benefits of alternative courses of action consistent with conserving the species or its critical habitat, and such action is in the public interest;

(iii) the action is of regional or national significance; and

(iv) neither the Federal agency concerned nor the exemption applicant made any irreversible or irretrievable commitment of resources prohibited by subsection (d) of this section; and

(B) it establishes such reasonable mitigation and enhancement measures, including, but not limited to, live propagation, transplantation, and habitat acquisition and improvement, as are necessary and appropriate to minimize the adverse effects of the agency action upon the endangered species, threatened species, or critical habitat concerned.

Any final determination by the Committee under this subsection shall be considered final agency action for purposes of chapter 7 of Title 5.

(2)(A) Except as provided in subparagraph (B), an exemption for an agency action granted under paragraph (1) shall constitute a permanent exemption with respect to all endangered or threatened species for the purposes of completing such agency action—

(i) regardless whether the species was identified in the biological assessment; and

(ii) only if a biological assessment has been conducted under subsection (c) of this section with respect to such agency action.

(B) An exemption shall be permanent under subparagraph (A) unless—

(i) the Secretary finds, based on the best scientific and commercial data available, that such exemption would result in the extinction

of a species that was not the subject of consultation under subsection (a) (2) of this section or was not identified in any biological assessment conducted under subsection (c) of this section, and

(ii) the Committee determines within 60 days after the date of the Secretary's finding that the exemption should not be permanent.

If the Secretary makes a finding described in clause (i), the Committee shall meet with respect to the matter within 30 days after the date of the finding.

* * * * *

(o) Exemption as providing exception on taking of endangered species

Notwithstanding sections 1533(d) and 1538(a)(1)(B) and (C) of this title, sections 1371 and 1372 of this title, or any regulation promulgated to implement any such section—

(1) any action for which an exemption is granted under subsection (h) of this section shall not be considered to be a taking of any endangered species or threatened species with respect to any activity which is necessary to carry out such action; and

(2) any taking that is in compliance with the terms and conditions specified in a written statement provided under subsection (b)(4)(iv) of this section shall not be considered to be a prohibited taking of the species concerned.

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§ 1538. Prohibited acts**(a) Generally**

(1) Except as provided in sections 1535(g)(2) and 1539 of this title, with respect to any endangered species of fish or wildlife listed pursuant to section 1533 of this title it is unlawful for any person subject to the jurisdiction of the United States to—

(A) import any such species into, or export any such species from the United States;

(B) take any such species within the United States or the territorial sea of the United States;

(C) take any such species upon the high seas;

(D) possess, sell, deliver, carry, transport, or ship, by any means whatsoever, any such species taken in violation of subparagraphs (B) and (C);

(E) deliver, receive, carry, transport, or ship in interstate or foreign commerce, by any means whatsoever and in the course of a commercial activity, any such species;

(F) sell or offer for sale in interstate or foreign commerce any such species; or

(G) violate any regulation pertaining to such species or to any threatened species of fish or wildlife listed pursuant to section 1533 of this title and promulgated by the Secretary pursuant to authority provided by this chapter.

(2) Except as provided in sections 1535(g)(2) and 1539 of this title, with respect to any endangered species of plants listed pursuant to section 1533 of

this title, it is unlawful for any person subject to the jurisdiction of the United States to—

(A) import any such species into, or export any such species from, the United States;

(B) remove and reduce to possession any such species from areas under Federal jurisdiction; maliciously damage or destroy any such species on any such area; or remove, cut, dig up, or damage or destroy any such species on any other area in knowing violation of any law or regulation of any State or in the course of any violation of a State criminal trespass law;

(C) deliver, receive, carry, transport, or ship in interstate or foreign commerce, by any means whatsoever and in the course of a commercial activity, any such species;

(D) sell or offer for sale in interstate or foreign commerce any such species; or

(E) violate any regulation pertaining to such species or to any threatened species of plants listed pursuant to section 1533 of this title and promulgated by the Secretary pursuant to authority provided by this chapter.

* * * * *

(g) Violations

It is unlawful for any person subject to the jurisdiction of the United States to attempt to commit, solicit another to commit, or cause to be committed, any offense defined in this section.

§ 1539. Exceptions

(a) Permits

(1) The Secretary may permit, under such terms and conditions as he shall prescribe—

(A) any act otherwise prohibited by section 1538 of this title for scientific purposes or to enhance the propagation or survival of the affected species, including, but not limited to, acts necessary for the establishment and maintenance of experimental populations pursuant to subsection (j) of this section; or

(B) any taking otherwise prohibited by section 1538(a) (1) (B) of this title if such taking is incidental to, and not the purpose of, the carrying out of an otherwise lawful activity.

(2)(A) No permit may be issued by the Secretary authorizing any taking referred to in paragraph (1) (B) unless the applicant therefor submits to the Secretary a conservation plan that specifies—

(i) the impact which will likely result from such taking;

(ii) what steps the applicant will take to minimize and mitigate such impacts, and the funding that will be available to implement such steps;

(iii) what alternative actions to such taking the applicant considered and the reasons why such alternatives are not being utilized; and

(iv) such other measures that the Secretary may require as being necessary or appropriate for purposes of the plan.

(B) If the Secretary finds, after opportunity for public comment, with respect to a permit application and the related conservation plan that—

- (i) the taking will be incidental;
- (ii) the applicant will, to the maximum extent practicable, minimize and mitigate the impacts of such taking;
- (iii) the applicant will ensure that adequate funding for the plan will be provided;
- (iv) the taking will not appreciably reduce the likelihood of the survival and recovery of the species in the wild; and
- (v) the measures, if any, required under subparagraph (A) (iv) will be met;

and he has received such other assurances as he may require that the plan will be implemented, the Secretary shall issue the permit. The permit shall contain such terms and conditions as the Secretary deems necessary or appropriate to carry out the purposes of this paragraph, including, but not limited to, such reporting requirements as the Secretary deems necessary for determining whether such terms and conditions are being complied with.

(C) The Secretary shall revoke a permit issued under this paragraph if he finds that the permittee is not complying with the terms and conditions of the permit.

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(j) Experimental populations

(1) For purposes of this subsection, the term “experimental population” means any population

(including any offspring arising solely therefrom) authorized by the Secretary for release under paragraph (2), but only when, and at such times as, the population is wholly separate geographically from nonexperimental populations of the same species.

(2)(A) The Secretary may authorize the release (and the related transportation) of any population (including eggs, propagules, or individuals) of an endangered species or a threatened species outside the current range of such species if the Secretary determines that such release will further the conservation of such species.

(B) Before authorizing the release of any population under subparagraph (A), the Secretary shall by regulation identify the population and determine, on the basis of the best available information, whether or not such population is essential to the continued existence of an endangered species or a threatened species.

(C) For the purposes of this chapter, each member of an experimental population shall be treated as a threatened species; except that—

(i) solely for purposes of section 1536 of this title (other than subsection (a) (1) thereof), an experimental population determined under subparagraph (B) to be not essential to the continued existence of a species shall be treated, except when it occurs in an area within the National Wildlife Refuge System or the National Park System, as a species proposed to be listed under section 1533 of this title; and

(ii) critical habitat shall not be designated under this chapter for any experimental population determined under subparagraph (B) to be not essential to the continued existence of a species.

(3) The Secretary, with respect to populations of endangered species or threatened species that the Secretary authorized, before October 13, 1982, for release in geographical areas separate from the other populations of such species, shall determine by regulation which of such populations are an experimental population for the purposes of this subsection and whether or not each is essential to the continued existence of an endangered species or a threatened species.